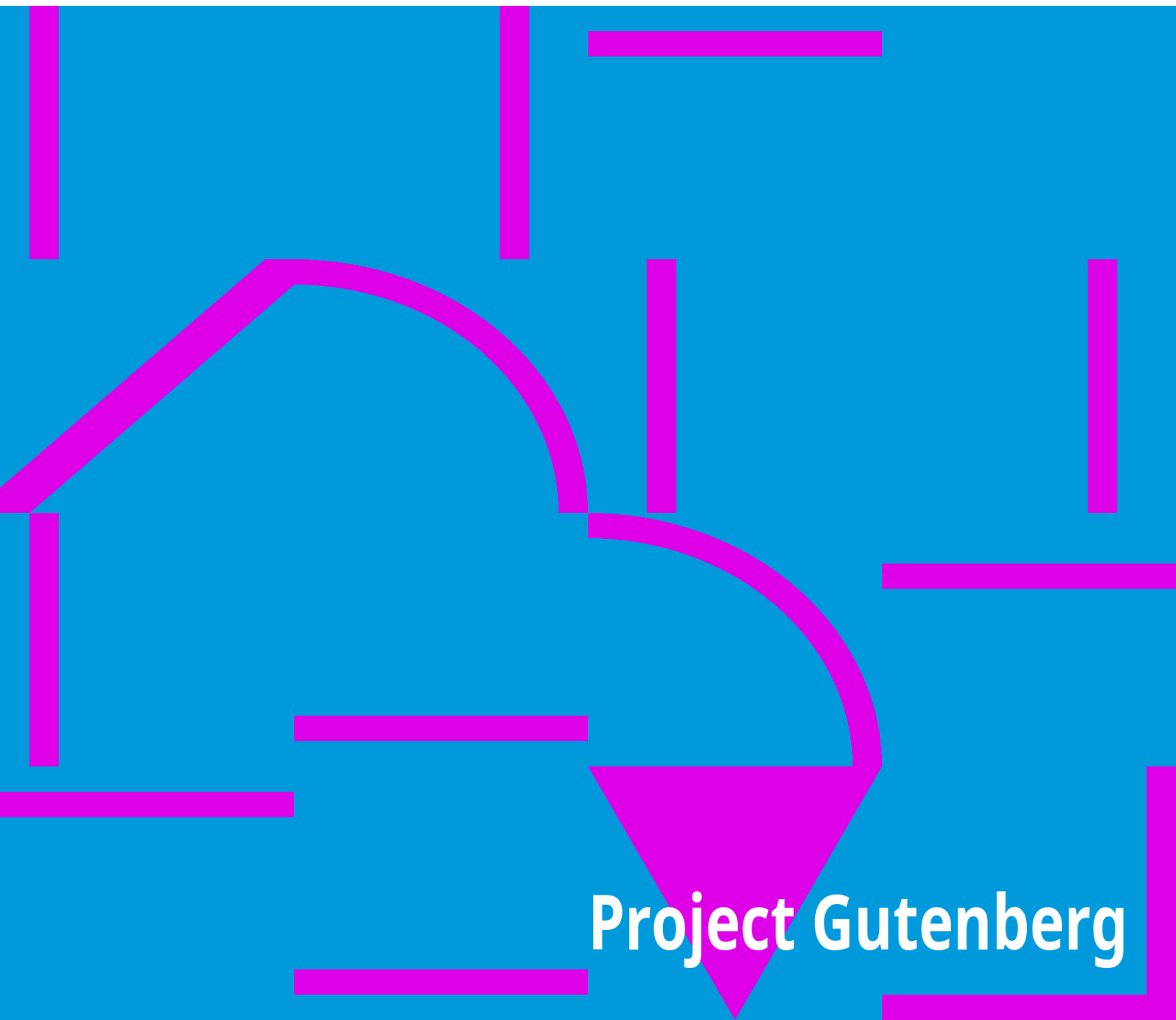


The Nightriders' Feud

Walter Caruth McConnell

The background of the lower half of the image is a solid blue color. Overlaid on this are several thick, magenta-colored geometric lines. These lines form a series of interconnected shapes, including a large, irregular polygon on the left side, and several smaller, more complex shapes on the right and bottom. The lines are of varying lengths and orientations, creating a dynamic and abstract composition.

Project Gutenberg

The Nightriders' Feud

Walter Caruth McConnell



Project Gutenberg

The Project Gutenberg eBook of The Nightriders' Feud

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Nightriders' Feud

Author: Walter Caruth McConnell

Release date: October 2, 2010 [eBook #33829]

Language: English

Other information and formats: www.gutenberg.org/ebooks/33829

Credits: Produced by David Garcia, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Kentuckiana Digital Library)

*** START OF THE PROJECT GUTENBERG EBOOK THE
NIGHTRIDERS' FEUD ***

The Nightriders' Feud

By Walter C. McConnell

**NEW YORK
THE COSMOPOLITAN PRESS
1912**

**Copyright, 1912, by
Walter C. McCONNELL**

CONTENTS

[CHAPTER I](#)
[CHAPTER II](#)
[CHAPTER III](#)
[CHAPTER IV](#)
[CHAPTER V](#)
[CHAPTER VI](#)
[CHAPTER VII](#)
[CHAPTER VIII](#)
[CHAPTER IX](#)
[CHAPTER X](#)
[CHAPTER XI](#)
[CHAPTER XII](#)
[CHAPTER XIII](#)
[CHAPTER XIV](#)
[CHAPTER XV](#)

The Nightriders' Feud

CHAPTER I

John Redmond, the second, had just completed his education in a New York college, having been graduated with high honors, and was therefore prepared to go out into the world and set it on fire with his brilliancy. But the call of the great business world was strangely superseded by the "call of the wild," which had long since taken firm hold upon his young heart. Since his earliest recollections his soul had longed to go out into the wild Western country, and he was now fully determined to appease his adventurous appetite amid the great wild mountains of the West.

Thoughts concerning his future flitted fast through his study-laden brain as the train sped on toward his home. Yes, he would go to the mountains and seek gold or coal where others, with less ability to find, had passed over the immense wealth which must surely lie hid deep beneath the great earthen mounds. This wealth, he thought, had been placed there by the Maker of the mighty earth, that his great skill as an engineer might be made known to the world. It was there for his own pleasure; it had not been intended that others should make the discovery. His training would enable him to make discoveries which others had not been skillful enough to make. The life would be just to his liking, and would fill a long-felt desire to invade the bowels of the hitherto uninvaded depths of rocky earth. It was not his intention to delay one moment; he would go at once.

The train sped on, and he reached his home in good time. There he was greeted with the sad news that his uncle, John Redmond, for whom he was named, had been slain by murderous Nightriders over in the valley of Kentucky. His tobacco crop had been utterly destroyed, his barns and out-houses devastated, his home burned to the earth, and as he was fleeing from the burning building, in an effort to save himself from a torturous death, he had been shot down in his tracks like a dog, a forty-four Winchester bullet tearing his heart to pieces.

What more would man need to set his soul on fire? What more would he need to raise his ire to the verge of distraction?

John Redmond, the second, stood with bowed head, listening to the terrible outrage; his Southern blood warmed to the boiling point. His heart beat fast, his teeth came together with a sharp noise, and his fists were tightly clenched. Revenge burned within him, his soul felt that the foul deed called for vengeance. In a twinkling his plans were changed. His adventurous spirit told him that his life's work had been found, that he must hie him to the country where his uncle had met such a hasty and untimely death; that he must seek out those who had murdered him and revenge the cold deed.

John Redmond had hardly known this uncle, having seen him only one time, but he was a kinsman, the same blood ran through their veins, their forefathers were the same, and he would be speedily avenged.

The younger Redmond sent agents into Kentucky to purchase land, and in a little while all preparations for a hasty departure had been made. The cabin purchased needed repair, but that would be done with his own hands. He would have plenty of time for all such work.

His intention was to go over and raise tobacco in direct opposition to the great association of good farmers. Let them do what they would, he would show them that he was a man of his own notions, and no set of men could run him, much less a body of uneducated "galoots."

Next you see of John Redmond he is crossing the country by wagon train. Slowly his caravan moves, finally reaching the place purchased for the future home of this man of strong desires and peculiar aims. The belongings were unloaded, and those who assisted him in the move bade him a successful ending and returned to civilization. While John Redmond, who introduced himself to this new country as "Jack Wade," was making preparations for a comfortable living, the eyes of the surrounding community were cast upon him. Slowly and untiringly he labored for a few weeks, getting everything in comfortable condition, seeking the assistance of the few loafing farmers, until matters were fairly arranged and everything fixed up comfortably for bachelor quarters.

If one should have been standing on the hill at a time very near sunset one afternoon, he could have seen Jack Wade, the graduate engineer, standing at the bars or gate leading from his horse-lot to a plot of ground used as a pasture for his one cow and one horse. He no longer has the appearance of a

soft-skinned school-boy, but rather is dark and ruddy, the warm Kentucky sun having changed his complexion. He has on a blue shirt, soft, with collar attached, high-top boots, into the legs of which his corduroy pantaloons are stuffed, in the style of a true Westerner. He has one foot resting upon the lower wire while his arms fell loosely across the top wire. He is surveying with his keen dark eye the surrounding country, not having had time heretofore to look about him.

Over yonder, about one mile to the south of him, is a farmhouse; over to his right, and a little to the northwest, is another cabin. Behind him looms up the huge mountain, amid whose rugged rocks and green shrubbery much of his time will be spent. He turns and looks toward the mountain; there he sees another cabin, or small house. It is the home of a tobacco planter, who has one son and an only daughter.

Nora Judson has many times looked longingly down the dusty road toward the cabin of the newcomer and wondered what he was like. Her scheming brain found a way by which she could tell.

Twilight's shadows are drawing the day to a close. Down the cow-trodden road can be seen an old brindle cow, coming leisurely, switching her tail from one side to the other, nibbling the sweet tufts of grass along the side of the trail. On she comes, until she passes the watcher and goes out into the woodland just beyond.

Wade watched the cow until she was out of sight, then he sighed.

"It's going to be a fearful job," he said mentally, "but the thing *shall* be done. Not one of them shall be left if God spares me long enough to take them away."

As the last words left his mind he glanced heavenward, as if to implore the Almighty to aid him in a work which he honestly thought was for the good of humanity at large and for God Himself. He was honestly convinced that he was on an errand of great mercy, and the world would be made better and humanity live more peaceably among themselves, and more godly by the fulfillment of his plans.

"Not one," he repeated, "not one shall be left to molest the peace of the innocent ones in this great valley,"—he swept his hand about him tragically,

—"in this wonderful valley."

He sighed again. The gloom of a departing day was gathering about him. The lonesomeness of a twilight in the valley was making a deep impression upon his young life and he was beginning to long for companionship.

The monotony of the hour was broken by the faint sound of a female voice coming from toward the mountain, calling, "Soo-cow, soo-cow, sook-sook!" The call came vibrating down through the valley to his listening ears. Jack Wade's heart gave one joyful bound because a human being, and that a girl, was near. Nearer and nearer came the call, until through the gathering darkness could be seen the form of a valley maid. Soon she hove into full view just up the road. On she came, calling the cow, until she stood directly opposite Wade.

Apparently she had not before noticed him standing beside the fence.

"Good-evening," said Wade pleasantly. A lovely flush covered her dark face.

"Howdy?" she replied. Then falteringly, "Seen anything of a old brindle cow down this away?"

"Yes," said Wade. "She's just yonder in the woodland grazing leisurely. I'll go fetch her for you."

"Ye needn't be so kind," said the girl. "I kin git her myself. Much obleeged."

She started on, unmindful of his grateful glance, after the cow.

"I'll go with you, if you don't mind," he said, "and show you where to find her."

She didn't mind, so Wade bolted, in athletic style, over the fence and joined her.

Old Peter Judson's daughter was a very beautiful girl. Jack looked into her face,—he had nothing else to do just now,—and wondered how it was possible that she could be so pretty. Though born and reared in the valley, and having known nothing of the outside world, she was fearless in speech and manner. Her form was indeed very fine for one who had not the

opportunities to gather grace, her voice was musically soft and sweet, her face was delicately fair. She looked up into Wade's eyes with an expression of earnestness that was almost an appeal.

"Ye are the newcomer, ain't ye?" she asked, unabashed.

"I've not been here a great many days," he replied thoughtfully.

"Have ye come to stay?" she asked.

The question was very direct, but Wade felt no uneasiness in replying truthfully. He had come to stay so long as everything was pleasant for him, otherwise he might pull up "stakes" and leave when he thought the time was ripe.

Her next question was even more direct. She stood for one moment, surveying Wade casually.

"Have ye come to raise terbacker?" she asked.

"No," he replied, "I shall raise tobacco but in small quantities, merely as a pastime. I am here especially on account of my health."

She surveyed him again, her large dark eyes going over him from head to feet.

"Ye don't look unhealthy."

She was quite right. He did not look unhealthy. His large athletic frame was not physically disabled.

"No?" he questioned. "Well, I'm not quite dead."

He laughed and so did she laugh, her silvery voice ringing out through the fast gathering darkness.

"There is your brindle cow," he said, pointing to the creature which stood with neck bent, looking back at the two approaching figures.

"Thank ye for bein' so kind," she said, looking up at him with a grateful expression upon her countenance. Picking up a short piece of broken tree limb she went round the cow, crying "Hooey-hooey!" and striking her about

the flanks. The cow, fully understanding what was wanted of her, started back up the road toward home, while the girl appeared to pay no further heed to Wade's presence, feeling that he had done his full duty in locating the cow. However, the latter followed her out of the woods, both of them trailing along slowly and silently behind the cow.

"I'm going to help you to get the runaway home," said Wade, smiling.

"Ye needn't," she exclaimed; "I know the road all right," a little sarcastically.

"But I also want to learn it," he replied, not in the least rebuffed.

"Ye might be losin' time for me, an' I don't want ye to do that," tenderly.

"I'd rather lose time assisting you than do anything else at this moment."

"Oh!" she exclaimed, "ef ye want to learn the road, come on."

Her face flushed. She felt it, but Wade could not penetrate the twilight sufficiently to discern the crimson coloring.

"I do want to," he said, "and I wish I had such a companion to show me the way over the mountain and through the entire country."

Unheeding this remark, she said, "Hit's a little lonely, livin' alone, hain't it?"

"It is while I am not very well acquainted with my neighbors, but I shall become better acquainted soon. One cannot expect to be greatly elated at once, or happy altogether, until he knows his neighbors well."

"Nice folks 'round here," she replied. "Once you git to know them you are sure to like them."

There came a moment of silence.

"Do you live in the house toward the mountain?" asked Wade.

"That's Dad's house. I live there—have lived there for many years."

"You are very fond of the hills and ravines, I presume?"

"An' the brooks. They are the only companions I have ever known, except my brother, an' he's been in the saddle ever since I was old enough to have companions, or remember anything. They are my friends,—the cow and the dog, the chickens an' the geese, the ducks an' the turkeys, an' even the grunting pigs, are the only friends I have ever known."

"What a terribly lonesome life that seems to have been."

"Not to me; it has been a happy one."

"Pardon me, I should not have spoken that way."

"Hit don't make any difference how you speak," she said independently. "We are used to everything here."

"Who lives yonder to the south of us?" asked Wade, pointing in the direction indicated.

"Jim Thompson. He's a terbacker raiser, too."

"And who to the west yonder?"

"Oh, that's the place where old John Redmond lived. It's not used now."

There was a tinge of sorrow in the girl's voice as she spoke.

"What became of old John Redmond?" asked Wade, his own voice quivering.

"Don't ye know, hain't ye heerd?"

"Haven't heard anything yet; haven't been here long enough to learn much."

This untruth brought a flush over Jack Wade's face, but it was not seen by the girl, the darkness being too deep.

"He was killed by the Nightriders," she said, choking; "shot to death when his home was burned."

"So that's the course pursued with a fellow here, is it?" Wade's lips curled scornfully.

"Sometimes, an' sometimes they don't. It's accordin' to what the other feller is about."

"What has a fellow to do to bring about such an end as that served out to old John Redmond?"

"Nuthin'. Old John didn't do nuthin'; that's what the trouble was."

"Who are the Nightriders?" asked Wade, after a moment's thought.

"Say, stranger," said the girl at this juncture, and evasively, "here's my home, an' ye better git now. Ef Dad ketches ye here he mou't do to ye like them fellers done old John Redmond, so I says much obleege fer helpin' me fetch the old brindle cow home."

"I'll help *you* any time I can," he said.

"Thank ye," she held out her hand shyly. Jack Wade held it in his own, pressing it tenderly, until she pulled it away from him.

"Good-by," she said softly.

"Good-by," he returned, and then turned to face the lonesome gloom.

CHAPTER II

As Jack Wade faced about to return to his own cabin he saw a lone horseman coming up the road toward him, riding very rapidly, which was a custom in the country. No one ever rode slowly.

Remembering the girl's remarks of warning, he concluded it the height of wisdom to be seen as little as possible lurking around the vicinity, as he was in the community for an avowed purpose and he must be very cautious in order to fulfill his mission. He therefore stepped back into the shadow of a friendly bush and allowed the horseman to gallop by without discovering him. He turned and watched the rider, until he entered the gate through which the girl had driven the cow a few moments before. A sudden impulse seized him to creep back under the shadow of the trees and learn what he might from the conversation which he could now hear but faintly. This being a very dangerous proceeding, his mind was changed. He did not feel that he was thoroughly enough acquainted with the surroundings nor the people and their customs, and would take no chances until he should know more clearly what he was about—until he became more accustomed to everything and everybody.

The horseman he had seen was none other than Tom Judson, brother of the girl he had assisted in locating the cow. Tom rode into the lot, jumped from his horse in true Western style, threw the reins of his bridle over the saddle-horn, rapped the horse over the hips with his gloves, and walked on behind him to the barn. Nora was now milking the old brindle cow, and her father was inside the barn putting feed into the trough for the stock.

"Peers ye air mighty late git'n' yer milkin' done," said Tom. "What's ther matter of ye?"

He tapped the girl upon the head with the finger end of his glove, and he tapped her again because she made no immediate reply.

"Reckon I hain't no later git'n' hit done than ye are a git'n' home, seein' as how I'm most done now," she replied.

"Milkin' a cow hain't nuthin' like takin' a day fer to ride over the country a givin' warnin's."

"What ye warnin' 'bout now, Tom?" she asked, with much interest.

"Go 'long, gal. Ye ain't been raised in this country fer nothin'! Ye know what I've been warnin' 'bout well 'nough, 'thout axin' me. They's a-goin' ter be hell raised in this country to-night. That's what I've been warnin' 'bout. Now do ye know, durn ye!"

"I reckon I do. Who's a-goin' ter git it this time?"

"Aw, ye want to know too much all to once. Jest wait 'til ye see ther blaze 'long erbout midnight, an' ye'll know all ye want to know."

"I mout be asleep then." Nora spoke feelingly. She desired to know more, but hesitated to ask direct questions.

"Yes," said Tom, "I reckon ye will be asleep when ye think somethin's a-goin' to be a-doin'. Them durn big black eyes of yourn'll see everything in the whole blame valley afore mornin'. Ye kin see plum through ther mountain when ye want to, an' they'll be a plenty fer you ter see to-night, an' ther newcomer——!" Tom stopped suddenly and Nora looked hastily up, inquiringly, hoping to hear him finish the sentence, but he spoke never another word.

"What's hit about ther newcomer, Tom?" she asked after a moment's hesitation.

"Nuthin'. What'd ye keer if hit was anything about him?"

"I don't; but ye was about ter say somethin' about him. That's why I axed ye. I don't keer nothin' about him no mor'n anybody else." Nora did have some anxiety about his safety, however, but she did not wish to show this to Tom. She knew her brother's failing.

"Well," said Tom slowly, "seein' as how ye don't keer, I was a-goin' ter say that he'd git his fill of peekin' 'round here afore he's many days older, d'ye hear me?"

Nora did hear, and felt a pang peculiarly new to her pass over her heart. Having now finished milking the old brindle cow, she raised up, gave her a kick on the legs, and poured the milk into a larger pail conveniently near. For one moment she studied the features of her brother, then spoke to him tenderly.

"Now, Tom," she said, "what has ther newcomer done that ye've got it in fer him?"

"Nuthin'," sullenly. "Nuthin' 'tall. Thought ye didn't keer so much 'bout him?"

"I don't."

"Then ye air mighty interested in somethin' down that away. What made ye ax me that fer?"

"Aw, go 'long, will ye? Ef ye don't know nuthin', keep yer lips buttoned; ef ye know somethin', tell it, an' don't be so tight with yer knowin's."

"Ye air sassy, sis. Well, they hain't nuthin' ther matter with him, but he acts like he mout do somethin' ef he hain't checked fust. Ef he opens his mouth too much 'round here ye know good an' well what mout happen ter him putty quick, don't ye?"

Tom gave Nora a slap in the face and followed on after his horse.

Old Peter Judson came out of the barn and, upon seeing Tom, asked if he had given the warning to everybody. He had, he said, "and what's more, everybody'd be thar."

Nora took up her milk pails and hurried into the house, where she found her mother busily engaged in getting supper on the table. After straining the milk and putting it away in its accustomed place, she assisted her mother in the work.

Silence prevailed within her soul. Not a word escaped her lips as she busied herself over the meal. Somehow she felt a strange foreboding. Her heart was full of thought for the safety of the newcomer, in whom she felt a peculiar interest.

He, not at all like other men she had known, had spoken kind words to her, and they touched a tender spot in her heart. He had assisted her to find the old brindle cow and had helped to drive her home. What was it that attracted this wild flower of the mountain to this man? And what was it that caused the unhappy throb when Tom remarked concerning him? These remarks were anything but reassuring. She worked on amid her soliloquy.

Mrs. Judson could not refrain from remarking the contrast between this thoughtful girl and her own Nora.

"Ye air mighty quiet, Nora," she said, her face drawn up gingerly. "What's ther matter of ye, that yer tongue hain't a-waggin' as usual?"

Nora stood for one moment thoughtfully pondering, while she deftly dried, for the third time, the saucer which she held in her hand, then throwing the dish towel over her shoulder, she faced her mother.

"Cain't a feller be quiet 'thout somebody a-thinkin' somethin's wrong?"

She was smiling deeply, the dimples in her cheeks showing beautifully.

"Not 'round this hyar kintry," replied Mrs. Judson. "Ye know yerself that when everythings quiet like 'round this hill somethin's 'bout ter happen. Now what does ail ye? What is ther matter with yer?"

"Tom says theys a-goin' ter be doin's 'round here to-night," replied Nora, "an' I reckon he knows, ef anybody does."

Mrs. Judson now assumed an air of utter silence. She knew full well that her daughter spoke the truth, that when Tom said that something was likely to happen about the valley it usually did happen, and very soon thereafter.

Tom and his father came into supper and ate quietly, while the women served them, this being the custom in this country. The fact that they were non-communicative now was because no doubt they had said, before entering the room, all that was necessary concerning the plans for the night. Nora remained in silence, ate her meal and cleared away the dishes, still holding the silence. She gazed up at the twinkling stars dancing in the heavens, at the great moon shining brightly, sending darting rays through the foliage of the large trees overhanging the cabin. A silvery mist hung

over the mountain and flitted through the valley, the while the stars smiled down on the troubled earth. Troubled? Yes, all mankind is troubled down the valley. Over all the deep blue of the heavens dropped a shining sheen to cover the already beautiful landscape. From afar over the mountain the voice of the night-bird came gliding through the mist, the "hoot" of the night owl sounded a note of warning, the sleepless animals of darkness pealed forth their notes of joy as they gamboled over the green mountainside, and down, far down in the depths of the rich valley, the cow-bell tinkled as the cow nibbled the sweet green grass. None of these had thoughts of fear, none of these discerned the great danger to humanity, none of these felt the deep heart throbs that beat in the breast of humanity.

It is growing late, but Nora Judson did not retire at her usual hour. She dared not, lest she should lose the sight that had greeted her on many similar occasions. However, she should not fail in one duty, her evening prayer. This had been a lifelong duty, taught her early. Even in the roughest and most rugged parts of this great universe the children are taught that God liveth and reigneth. Somehow God gets into the most seemingly forsaken communities in the remotest corners of the earth, and lets it be known that He is the Almighty. He assumes power everywhere. The child of the wildest region learns some form of prayer. Mrs. Judson had taught Nora in her earliest days to say "Now I lay me down to sleep," but knowing that she was not going to sleep this night Nora said to herself, "What shall I do? what shall I do? fer I hain't a-goin' to lay me down ter sleep this night. I hain't. O Lord, what shall I say?"

Strange as it may seem, it had never occurred to her that any form of speech other than she had been taught would be a prayer, therefore she was utterly lost to know how to proceed. She looked wonderingly heavenward as if to catch inspiration. Then it was that the thought was aroused within her, the thought that she should pray for others. Her pure young heart had found a way to speak to God, so she bowed her head and clasped her hands and said tenderly, "O God,"—she hesitated as if gathering thought for expression,—"*kin* Ye keep a secret? Ef Ye *kin*, don't tell anybody how the old brindle cow got under the wire. Don't, fer goodness' sake, 'cause ef ye do, hit mout git *him* into trouble. O God, he is so nice. Them han'some eyes of his'n is a-hauntin' of me yet, an' he was so good ter help me find old brindle an' drive her home. I *was* askeered to come up ther road by myself, but I didn't want

to let on to him like as ef I was, 'cause he mout a-thought I was weak, an' he was so good an' spoke so tenderly an' kind-like.

"No man hain't never spoke to me that away afore, not even Al Thompson; but I 'spect I don't keer nuthin' 'bout Al, an' maybe I never did; an' *he* said he was here for his health an' would raise ter—he said to-bac-co. He knows, an' that must be right. O God, I hope Ye didn't let Tom see him as he was a-goin' back ter his shanty, 'cause ef ye did, hit mout bring on more trouble fer him, an' I know Ye don't want him to get into trouble. Tom's a good boy an' don't mean anybody harm, but——"

Nora stopped and leaned forward, straining her ears to catch the weird sound. From toward the mountain there came the clattering of many horses' feet as they fell heavily upon the rocky hillside. On they came. Nearer and nearer, louder and louder, the clattering sound grew.

Every strike of a hoof upon the rocky way was like a needle driven into her breast over her heart. With few words she cut her prayer short. Looking heavenward she muttered imploringly, "Save him, an' let old brindle git out again sometime."

She stepped over to her one lonely, paneless window, pulled the latch string, shoved the wooden panel aside and, peering out into the gloom, listened with heavy beating heart to the clatter of the horses' feet as they drew nearer. Heretofore this same sound had been as sweet music in her ears. She had grown up in the midst of it, and her heart bounded with great pleasure whenever she heard such a sound; but now it was different, somehow she did not enjoy it. The many horsemen drew nearer, until she could see them bounding rapidly down the mountain road.

Outside she saw two lone horsemen in saddles, standing by the gate, as immovable as statues. Silently they sat, neither horse nor rider moving, not a sound escaping their lips. The mighty throng of horsemen were now passing directly in front, and the two silent watchers of the night quickly joined the mad race. Not a word escaped any of them until they were nearing Jack Wade's cabin. Then one fellow leaned over and whispered, through his heavy dark head-gear, to his companion nearest him, "Wonder if he'll fall in, too?" There was no reply. Perhaps one was not expected.

On they flew, black demons of darkness, destructive vultures of freedom, cutting the wind as if they had been a two-edged sword; slashing the mist with their foaming steeds, dark steeds, as dark as the starless night; enshrouded in caps as dark as the cloud-covered moon, speaking never a word, but groaning destruction deep down in their revengeful souls.

Jack Wade was awakened from a peaceful slumber by the thundrous tramp of the horses' heavy feet as they galloped swiftly by. He rose stupidly and went out, but as he looked, saw nothing, yet it seemed to him that the very atmosphere of the valley was alive with fantastic dancers. The weird spectacle grew before his sleep-laden eyes, until the devils of hell seemed encrouched about him. Evidently they were bent on tearing his heart asunder, for there they were preparing to spring upon him.

"Begone, ye devils!"

The beat of the horses' feet falling upon the softer ground grew fainter and fainter, until the sound could be heard no more. Wade sat in his doorway pondering and wondering over the strangeness of the people among whom he had taken up his abode. He knew that the noise which woke him had been made by the tramping of many horses, but knew not whither they were bound, nor what their errand. He sat for a long time looking down through the lowlands, dreaming, pondering. Ever the great dark eyes of the valley girl danced in the moonlight space before him. Her soft stare, tender hands, and innocent expression haunted him. Out in the deep distance a dog was baying. The horsemen had no doubt awakened him as they had awakened Wade, and he was entering his protest in loud and continuous bays. Behind him a rooster was crowing the midnight hour, his own wall clock tolling the same hour. Overhead the moon was shining brightly, sending her silvery rays to greet all the earth.

Suddenly there arose over the valley the shout of many voices, mingled with the baying of as many dogs, then the midnight air was rent in twain by the vibrations caused from the firing of pistols and rifles.

"What now?" thought the ponderer. "Ye gods! this is a fearful condition."

Some two miles away a faint red light grew up out of the mist. Wade strained his eyes in an effort to discern more clearly the cause. The light

grew until the watcher could clearly discern the flickering blaze as it leaped high into the heavens, apparently bent on devouring the very stars that gave light to the darkened earth. Still the blaze grew, sending forth sparks like great balloons of fire. Over a little way beyond another light sprang up to greet the straining eyes of the watcher, and also grew in brightness, until the whole landscape for miles over the valley was one bright sea of flame. The sight was too much for Wade; he could not sit longer and watch it from such a great distance. Hastily saddling his horse he rode toward the conflagration, having two specific objects in view. One, and the lesser, to witness the great conflagration; the other, to learn something of interest to himself.

The road over which he was traveling was so entirely new to him that he found it quite difficult to make any speed, therefore he resigned himself to a jog-trot, picking his way over ravines and around low growing shrubs, sometimes emerging out into the open and traveling beneath the large forest trees. He often wondered how it was possible for the horsemen who had gone on ahead of him to have kept up such a terrible speed on such a road. They knew the earth beneath their horses' feet, every inch of it, and feared not, he concluded. Their horses were fully acquainted with the rough way, and hesitated not. How friendly the light of the waning moon appeared to that lonely traveler in that silent dark region! How beautifully shone the little friendly stars, those small heavenly bodies, from their homes in the clear blue sky! One does not realize the full value of the moonlight until one has real necessity for it, then its great value is known—indeed no value can be placed upon it then.

No light now came from the conflagration he was desiring to witness, but there would be, as soon as he emerged once more into the open. He went on cautiously, until he came out into the moonlight again. Yonder to the right of him was the fire, still burning brightly, sending up a flickering blaze. He hurried his pace as much as possible over the road, and now saw a lone horseman speeding like the wind toward him. In another moment he passed. His head was uncovered, but that was not unnatural. It was all right; he knew him not. This lone horseman turned in his saddle and glanced at Wade when he had got past him, never a moment allowing his steed to slacken his pace. That was also all right. They did not know each other. Wade hurried on, finally reaching the burning building, where he found not a living thing,

human nor beast, nothing saving the dying embers of a burning home. The light from the burning barn was brighter, and as he glanced that way he discovered a poor horse lying by the gate in the agonies of death.

"Poor fellow," he thought, as he watched him breathe his last, "your useful days are over; nothing can save you now."

Wade looked farther. On all sides he saw nothing but charred ruins, dark devastation, no sign of human nor animal life—not even a sign of vegetable life. No noise, not even the deep bay or the low whine of the farmhouse dog greeted his ears. Again he turned back into the darkness of the night and made his way to his cabin, none the wiser for having taken the trip.

CHAPTER III

Jack Wade was neither physically nor mentally afflicted. His great body was physically strong, his mind was symmetrically powerful. His college training prepared him to face the many difficult problems of life, his elect wisdom led him carefully at all times, and his athletic ability stood him well in hand on many occasions. As he sat pondering, he wondered over the peculiar fact that not a soul in the entire valley with whom he had talked had been willing to breathe one word concerning the great conflagration of a few nights previous. No one ever spoke of it, as though nothing so important had ever happened. Yet one man had lost, in little more time than an hour, what it had taken a lifetime to accumulate.

Things down in the valley were mysteriously strange. Wade had been in the community for some time, with an avowed purpose, but had not learned a single thing that would lead him to any knowledge of what he most desired to know. He was not yet even fully acquainted with his nearest neighbors, and, feeling this to be necessary, he placed a book under his arm and strode up the hot dusty road toward the cabin nearest the mountain, knowing but little what kind of reception would be accorded him. However, the reception was a secondary matter,—the sort did not bother him in the least,—as his thoughts were not on kindly receptions in this God-forsaken community. Apparently there was no friendly feeling between any two persons in the valley, therefore he did not look for a kindly reception, nor did he desire one. He wanted to know the people, that was all.

He passed the little bush which had so kindly sheltered him when Tom Judson came rushing by, and reached the spot where he had bid the little wild flower, the valley girl, good-by. It all looked the same yet. There was the planter's cabin, just as he had seen it on the other occasion; there was the old rickety wire gate through which the girl drove the cow and through which her brother had led his horse soon afterward, and through which he himself now strolled. He felt a peculiar shyness, this man of the world, when he went into the little farmyard. The dog bayed, the chickens cackled loudly, and the ducks quacked, raising their heads loftily and scampering

off toward the horse-lot. One old turkey gobbler proudly strutted dangerously near him, signifying that he must be very careful while treading on the soil of their domain. Through the window the girl was watching him, her lustrous eyes all aglow at his approach, her big heart beating a pit-a-pat against her shapely bosom, so fast that she greatly feared lest he must hear it from his waiting place outside.

It was really the newcomer, the one person of all persons whom she most desired to see. She remembered his last conversation, his kind words, his attentive attitude. She had enjoyed him hugely, and wished for the time when she should hear his sweet voice again. By the time he was ready to knock she stood at the door, slightly blushing, not in the least backward. Their eyes met, but that bespoke nothing. Her eyes had met the gaze of others; so had his.

"I've brought a book for you to read," he said, not knowing that she could read at all.

"You needn't," she replied, reddening. But she took the book, as he gave it to her. Turning her face back toward the house she cried with a loud voice, "Mam! here's John, ther newcomer."

Jack looked up startled, greatly confused. She laughed at his confusion.

"That's the name I give everybody who I don't know," she said, smiling.

Wade felt quite relieved, his confusion at once disappearing. The simplicity of this pure valley girl wrought within his soul a feeling almost sympathetic. The simple means she had employed in asking him to introduce himself caused a feeling akin to shame to cover his heart. Recovering his composure, he said:

"I am Jack Wade. I beg your pardon for not having told you before."

"Ye needn't," she replied, extending her hand. A continuous smile played about her face.

"And your name?" he asked hesitatingly.

"Huh!" she grunted. "Thought everybody knowed me. I'm Nory Judson, only gal of Peter Judson, owner of this large terbac—to-bac-ker farm. I'm

pleased ter know ye, Jack."

Wade smiled as she requested him to take a seat upon the rickety little porch and make himself at home. She sat beside him and dangled her feet in and out under the porch.

"You haven't got it quite right yet," he said, looking into her face.

"Got whut right?" she asked, a far-away expression covering her countenance.

"Tobacco. T-o-b-a-c-c-o."

"To-bac-co, tobacco," she slowly spelled after him studiously. "I thought hit was terbacker," she continued in apparent animation, "an' nobody hain't never said hit ain't 'round here." She did not mean to rebuke him for the correction. He thought so only because he understood her so very little. However, the subject was most too grave for him just at this juncture in their lives, therefore he quietly evaded further comment, feeling assured that it was not his duty to show this simple, sweet child of the mountainside how incorrectly she spoke, although he would gladly have done so could it have been done without in the least affecting her feelings. The time was not opportune. She was sensitive, perhaps, in a large degree, and he cared not to trample upon her sensibility. Far better that he place himself on a plane equal to her own as regards the use of the English language; otherwise she was more than his equal. Besides, he was in sore need of friends to assist him in fulfilling his purpose.

"No one may ever say that you are not quite right," he said jovially. "If they do, you may call on me and I'll see to it that justice is done."

He smiled and she could not refrain from smiling.

"I forgive ye," she said, "because ye are a lonely bachelor, an' I don't want ye ter feel bad. Ye look so lonesome."

"Thank you. It is very lonely down at my cabin just now, though I surely will become accustomed to this quiet life soon. Then all loneliness will disappear, I presume. Just think of a fellow being away out here by his lonesome self all day and all night, without a human soul to vent his wrath

upon or to have a quiet conversation with, and your old brindle cow won't come down that way any more."

She blushed, the crimson covering her face making her appear the more beautiful, if such was possible. The flickering sunlight played on her face as she replied, "She mout a-come agin fer all ye know sometime."

"If she does, I hope she'll get entirely lost deep down in the woodland."

She turned sharply toward him.

"What fer?"

"So you may take longer to look for her, and upon discovering your inability to locate her, may request the newcomer to aid you in the search."

She was studiously silent for a moment, her feet still swinging to and fro underneath the porch. "I know these woods better'n you."

"But we are to suppose that the hour is very late and you are quite afraid to go into the woodland for fear some wild beast will catch you."

Her merry laughter rang over the mountain.

"Would ye help me agin?" she asked.

"Every time."

Again she sat silent.

"Old brindle mout git out agin and she mout git lost. Whut's ther book ye brought me?"

"A story of the Dark Ages."

"Whut's that?"

"What?"

"Ther Dark Ages."

"Oh, that's a time away back yonder before you were born."

"Hit was putty dark in them days, wasn't it?"

Wade's face flushed perceptibly, but he smiled.

"You cannot be so very much younger than myself," he said.

"I don't know how old ye are, but I know I'm old 'nough ter go ter town alone, an' can bring the cows home when Tom's not here."

"Who is Tom?"

"My only brother. Ye seed him t'other night when ye come with me ter fetch the old brindle cow home, didn't ye?"

"I saw someone on horse back coming up the road."

"Did *he* see ye?" She bent over and looked straight into Wade's eyes.

"I tried to keep him from doing so. I stepped behind a sheltering bush while he passed, not that I particularly cared for his seeing *me*, but I felt for your safety. You had told me that your father must not see you with me, therefore I was in hiding for you, not for myself at all."

"Ye needn't," she replied warmly. "It's fer yourself I'm lookin' out. I can take care of me. The next time ye can, jest keep on in ther middle of ther road ef ye think yer hidin' fer me. Ye hain't, no, ye hain't."

Again Wade thoroughly misunderstood. "Let us keep peace," he said tenderly, "because you are my nearest neighbor now, and I'm a most neighborly fellow. I came over to-day because I believe neighbors ought to be friendly."

"Is that all?" she asked, a wild and troubled expression in her dark eyes. "No, not all, not quite all," he answered thoughtfully. "Had there not been an attraction here——"

"Whut's 'attraction'?" she interrupted shyly.

"Something to bring a fellow." She could not seem to understand.

"Your hoss could a-done that."

Wade laughed outright. The silvery notes touched deep down into the girl's very heart and soul, and she laughed a joyous laugh.

"I mean there is something on the other end to attract, to cause a fellow to have a desire to go. For instance, a magnetic power attracts other things, other bits of steel directly to it——"

"Whut's magnetic power?" she asked, interrupting.

"Haven't you seen a lodestone or a bit of steel in the shape of a horseshoe that will pick up a needle of its own power?"

"I can do that. Is it a sign that I'm magnetic?"

"Sure. You are the power of attraction just now."

"Aw," she ejaculated, looking shyly at him, "I don't know whut you mean yet."

"I'll bring a stone when I go to the village again and teach you something of the power of magnetism."

"Ye needn't. I know all about that. Al Thompson said onct that I was so powerful a magnetic that he jest couldn't keep away from me. Now I know whut he meant."

"Who is Al Thompson?" asked Wade.

"Why, don't ye know? He's ther wolf—night-watch jest now."

"You are talking strange things to me, Nora. I don't know the wolf—night-watch—at all." The girl placed her finger over her lips. "Here comes Mam," she said.

The scrawny figure of Mrs. Judson appeared in the doorway. "Nora," she said, drawling, "who'd ye say this man was?"

"His name is Jack. That's all I remember."

"Wade," said Jack, smiling.

"That's hit, Mam, Jack Wade. Well, he's ther newcomer, an' our neighbor, an' he's come over ter make hisself 'quainted with us."

"Yer welcome, neighbor Wade," said Mrs. Judson. "Whar be ye from?"

"All the way from New York City."

"Phew!" whistled Nora, dangling her feet a little more furiously. "That's ther biggest city whut hit is, haint it?"

"Well, the largest in the United States, at any rate."

"Be ye a-goin' ter raise terbacker——"

"Tobacco, Mam," corrected Nora, with a knowing wink.

"Whar'd yer l'arn ter be so smart?" asked Mrs. Judson angrily.

"From Jack here. He's been teachin' me ther smart ways of ther town folks."

Jack smiled good-naturedly. He did not intend raising tobacco in great quantities, he said, as he was here on account of his health, but would raise some tobacco, just enough to keep him engaged, to keep him out of deeper mischief.

"I might have the same fate served out to me as did one over yonder a few nights back, if I should raise much tobacco."

For a moment there was a deep silence over the trio. Nora looked quickly up toward the mountain, while her mother cast her eyes downward and counted the cracks in the porch floor.

"Ye mout come through all right," she said finally.

"I might, and I may conclude to raise a large crop some time. I have lately purchased the old Redmond farm, but don't intend using it for the time being. A fellow living a lonely life does not feel greatly like working much."

"Ye've got the richest land in ther whole valley," said Mrs. Judson, "that's sure."

"I have heard so. I look for great crops off it in the future. Do not hope to meet the same fate the former owner met with."

"Not very likely that ye will. I hope not."

"Thank you."

Wade, feeling that to prolong his call at this time would be encroaching on mountain hospitality, excused himself, promising to come again.

"I'm very sorry," he said, "not to have met your men folks."

"They mout be here next time you call," said Nora, following him out to the gate, loath to see him going. "I'll read ther book clean through. Good-by, Jack."

"Good-by, Nora."

There was something attractive in young Jack Wade's bearing that caused Nora Judson to look long after him as he wended down the road toward his own cabin. Once he looked back and saw her still standing at the gate, where he left her. Her hands were clasped before her, she stood erect, looking neither to the right nor to the left, but straight in front of her. Jack waved his hand, but she did not return the wave. When he was a long way off he turned and looked again. She still stood motionless, gazing out into the far beyond, her dress waving in the gentle wind, her tresses, wafted by the gentle breezes, falling about her crimson cheeks.

CHAPTER IV

The cool air of the early morning, blowing down from the mountain, is refreshing and invigorating to Jack Wade, who is standing in the door of his cabin leaning against the facing leisurely, taking in with his eye the broad expanse of the valley before him.

He inhales deeply of the pure fresh Kentucky morning air, while his athletic frame quivers in the light of the rising sun. The eastern horizon was all aglow with the brightness shining through the flitting snow-white clouds. It was a beautiful picture, so he stood silent, drinking in the scenery of the surrounding country with great pleasure. Behind him, unknown to his waiting heart, stood a pure, sweet girl, gazing out through the deep mist of the morning, as if to penetrate the very depths to a distance where she might get one glimpse of the single man who had unconsciously awakened within her soul a new life, a new hope. A new being sprang up within her, her soul longed for the time when she could see him and hear his musical voice speaking to her inner life and vibrating to the deepest depths of her quivering young heart.

Wade thought of her often, but only as a newborn, unopened bud. He thought of her oftener than he felt he should, but he couldn't help that. Still, a flush of feeling came into his heart when he did think of her. What was it? What was this dark-eyed daughter of a tobacco planter to him that he should quit his pondering when the memory of her crossed his mind or when her crimson face rose like a vision before his eyes? She must be regarded as secondary. Other matters claimed his attention first, and should receive strict and careful consideration. But he could not resist. Temptation, ah, temptation! thou art the power which overcomes strong man. Wade threw the saddle on his horse, strapped his rifle on the saddle, and rode up the road toward the climbing sun, toward the towering mountain, intending to take a few hours in hunting, and casting over the views on the other side. When he reached Peter Judson's cabin he hesitated. "The attraction, the hoss, hit brung him."

Old Peter was stringing some new wire along the outer fence and did not notice Wade's approach; if he had noticed him he did not let on.

"Busy this morning, neighbor," said Wade, pulling up. Old Peter turned abruptly, spat out a great stream of "terbacker" juice and replied: "Ther durned old cow gits out too often. Gotter double ther wires. 'Light an' hitch, won't ye?"

Wade would, as he wished to become better acquainted with his nearest neighbor. He had called before, he said, but had found Mr. Judson gone out on business, and he was glad to find him at home on this beautiful morning. While Wade talked with Old Peter Judson, he could feel the power of those piercing dark eyes as they penetrated the window pane behind him. The vision was again before him. The bewitching smile, the great rows of pearly white teeth, the dimples in either cheek, he saw, though she sat somewhere in the dark recesses of that little old cabin. But this did not deter him. He spoke of the great prospect for another crop, while the old man leaned against a fence post and occasionally spit a stream of dark red tobacco juice.

Once he took deliberate aim at a young chick and missed him about a half inch. He would have drowned him had he hit the mark.

"Ye haint got chickens down ter yer shanty?" said the old man questioningly.

Wade had a few old hens and a rooster, he said. The hens were not laying,—they were not the laying sort,—but he hoped to raise a few chickens along just for his own pleasure, to get diversion from other duties. He spoke so kindly and firmly that Peter Judson thought he was going to like him, unless he took to different ways, unless he was "agin" the poor man, unless he "mout do something terrible." There was a chance that he was all right and there was a chance that he was all wrong. The "Wolf, Night-Watch," had discovered things that did not at all seem right, and until they were proved false or true an opinion would not be entertained. While one talked with him, there arose a doubt as to whether the Wolf, Night-Watch, might not be utterly mistaken. That would be determined later. For the present he was perfectly all right.

Wade was also making discoveries of which he thought his neighbors knew nothing. He was in the community, he told Judson, to aid and assist his neighbors, especially those who showed an inclination to assist him and a friendliness toward him. He had sufficient funds, he said, to enable him to go through life easily, and therefore his sole aim was *not* to make money, but to regain lost health. Old Peter opened wide his eyes, making occasional replies.

Though thoroughly uneducated, Peter Judson was no fool by any means, and he had a mathematical way of his own to figure out problems which confronted him in every-day life. He was plain, but staunch, was glad to know his neighbor, and hoped he would call often. They were immediate neighbors, he said, and should be friends: Peter even invited Wade to come back and take dinner, and Wade accepted, pleased with the opportunity that should lead him into the family of which he desired to learn more. He wanted to know their home life, their inmost thoughts, and he therefore gladly accepted the kind invitation to lunch. Wade turned to go, but some supernatural power impelled him to hesitate, and that hesitation brought forth her whom he of all people most desired to see. Nora, seeing that the conversation between her father and the newcomer was about completed, stepped out, with flushed face and throbbing heart, to thank him for the book which she said she had read and enjoyed.

"I have others," he said. "I shall bring another to you soon."

"Thank ye. Are ye goin' a-huntin' fer game, er what?"

"For game."

"I can show you where ye can git lots of birds."

"That she kin," said Peter. "I most forgot. Jest take mine an' Tom's guns an' leave yer rifle here, an' that gal'll show ye how ter hunt in this kintry. She knows ther haunts o' every bird an' every squirrel in the mountain."

This arrangement was very agreeable to Wade, who accepted with beaming pleasure, leaving his rifle while he took a shotgun, as suggested by Nora Judson's father. Wade desired to saddle a horse for Nora, but she protested stoutly, saying that she could throw a saddle on a horse quicker than he could, which he readily agreed was true. Together and happily they rode

toward the mountain, with light hearts—they were both young—conversing as freely as if they had been lifelong acquaintances. Over the rugged mountain side they rode, sometimes down the little ravines or niches, sometimes beside the rough boulders, always side by side, talking, laughing, joking, until they reached a spot where they were to hitch the horses and traverse farther in on foot. The sweet wild mountain flowers waving in the breeze nodded their little dew-dipped golden heads in the light of the summer sun as they passed them by.

Wade dreamed of their beauty and fragrance as they peeped up from their rocky beds with a look of entire approval and recognition. He stopped once to pluck a flower, which he gave to Nora, and which she accepted blushing. This one simple act carried to her heart, inexperienced as it was in the ways of the world, greater significance than Wade had meant. He was so thoroughly unacquainted with the customs of these mountain people, and didn't know. She was silent for a brief spell,—she was always very silent when thinking,—then as if impelled by the spirits of the air she thanked him in her simple, innocent way, while her head dropped until her chin rested on her bosom.

"I read your book through," she said, breaking the silence, "and hit—it has done me so much good."

"Tell me about it." They had reached an open grassy spot bordered by thick brush and tall trees. "Sit here while you tell me something from your heart."

Wade had not failed to notice that she often corrected herself in speech at times when she deliberated.

"And the birds?" she asked, looking toward the blue sky with a far-off expression.

"Never mind them,"—hastily. "We shall get all the birds we shall want to take home later. Now, let us have one good talk together out here in the open, on the side of this lovely mountain, where none save God shall see us or hear us, where we can open our hearts to each other."

She sat down in a manner not unbecoming anywhere, and he sat opposite her.

"It must be mighty lonely fer ye all by yerself—yourself," she said.

"It is, quite, just now; but I shall have company soon."

She looked up sharply, inquiringly. "When and who?" painfully.

"Can't just tell when, but sometime in the near future."

She was still looking at him questioningly.

"I'm going to have a family on the Redmond farm," he continued; "am building there now."

She felt relieved.

"Haint ye got a sweetheart back yonder in the big city?" she asked.

He looked into her eyes, but she cunningly evaded the stare.

"Won't you be my sweetheart?" he asked, smiling. He saw the crimson creep to her face and she lowered her head.

"Ye didn't answer my question," she said softly, head still drooping.

"I have not. I have no sweetheart anywhere. Women never cared for me"—sorrowfully.

The little brown poppies waved their heads in wild delight, while the chirping birds sang songs of rejoicing from the treetops, as they looked upon this peculiar mountain scene.

"What did ye come into this country for?" she asked abruptly.

He smiled.

"You don't believe me. If I should say I came here to rid the country of the terrible band of destructive Nightriders, would you believe it?"

She started violently.

"Don't say that," she said; "don't ye do it."

"Why not? If I tell you I am here for my health, you don't believe that. Why not say something equally as ridiculous?"

"Nobody believes ye come here for your health, an' everybody might believe ye had an idea ye could rid the country of Nightriders. They're ready to believe anything of a newcomer. They think he's a spy, an' they mout think anything that they take a notion to think. My warnin' to ye is that ye better not say that, ye better take it back as a joke right now."

"You wouldn't tell on me, would you?"

"Ye better take it back."

"I won't take anything back," he said firmly, but smiling.

"Ye frighten me, Jack."

She spoke with all the tenderness of her heart.

"I don't mean to do that. I'm very docile, I'm just opening my life to you because I—I think I like you and——"

"Ye needn't," she said, blushing. "I know what ye would say. Dad don't like for the gentlemen to talk to me that away."

"Dad is far away just now, and if I say I like you, Nora, it is because I do, and your Dad can know that much if he so desires. I do not mean to deceive him, nor would I deceive you for all the world and this big mountain thrown in." He peered down into those great dark eyes, which met his gaze with unflinching, gleaming admiration. "It's so pleasant here," he added.

"Ain't it pleasant in the big city?" she asked doubtfully.

The outer world now held a certain charm which to her had not been known before.

"Not so pleasant as it is here on the mountain side," he replied. "Listen, Nora. In the city you cannot hear the rippling waters as they dance down the rocky pathway over the hill to the stream beyond. You cannot listen to the song of the wild morning bird as he cries out in his great freedom from his lofty perch in yonder tree top; you cannot inhale the pure fresh air as it

glides gently over the brushy way; you cannot hear the rustling of the dry leaves as you do here, therefore, it is not so pleasant in the big city."

"Ye gets used to that here," she said.

"You get used to the clanging bells, to the snorting whistles, and to the dusty, smoky atmosphere in the city, too, but there is still a difference. There you see people at all hours of the day and night busily rushing to and fro, this way and that, rushing, pushing, jamming, nothing more."

"I think I would like that for a while," she said.

"No, you wouldn't. Not long. It is not near so pleasant there as it is here, and by your side." He slipped his arm around her waist. She made no effort to disengage it. "It's so ple——"

"What's that?" she said, startled. A rifle shot, followed by a wild yell, broke the peaceful stillness of the mountain air. She leaned her head far over and listened. "That's Al Thompson," she cried. "Let's be a-goin'. When he's that away I don't want to meet him. He's dangerous." She broke from his grasp and stood erect, listening.

"I have no fear of Al Thompson, nor any other man," he said, rising. "Where this arm falls power falls with it. I am monarch of the hill just now."

He was dramatic, and she admired his great physique and brave words.

"Ye don't know Al," she said. "He's been drinkin', an' is not accountable for his actions, so we'd better be a-gittin'."

"If you have no confidence in my strength," he said angrily, "we shall go."

She felt a little hurt.

"I didn't mean to," she said slowly, "but I want you to go so's you'll be safe."

They started off, but before they cleared the opening that hideous yell broke the otherwise dead silence, and Al Thompson darted through the thicket like a madman, brandishing his pistol over his head, and with a roar of anger, cried out:

"I've got ye now, durn ye', an' ye'll never see daylight agin. Hit ther road, gal, while I lay him out like a dog."

Al was coming nearer and nearer as he spoke. Wade did not flinch, but stood like a man. Nora stepped in front of him to protect him from the onslaught, but she was like a twig in the hands of that maddened giant. He caught her by the shoulder and cast her aside as though she had been chaff before a strong wind. However, he did not reckon on the powerful agility of his athletic antagonist, who, before the wild man knew what had happened, knocked the pistol from his maniacal grasp. One of Wade's fists then shot out and struck Thompson squarely on the nose. He went down, grunting under the smart of pain, while Wade stood over him like a heroic victor, not deigning to strike his enemy while he was down. Nora's admiration for Jack's daring and skill grew stronger as she saw him standing there over the prostrate form of his victim, whom he could have killed had he chosen to do so.

"What ye goin' ter do with me since you got me down?" asked Al doggedly, not in the least defiantly.

"I'm going to let you get up so I can have the great pleasure of knocking you down again," Wade replied, with flushed face and animated voice.

Thompson saw the very streaks of fire as they shot from Jack Wade's eyes, and he made no effort to rise. He just looked sullenly, first at Wade, then at the girl.

"Get up, quick, you coward!" exclaimed Wade warmly.

"I'm comfortable 'nough here," replied Thompson. "If I get up ye might keep your word an' lay me out again."

Jack Wade was not fully acquainted with the mountain laws, the laws as regarded between man and man, or man and his sworn enemy. No other law counted for anything with the mountaineers. If any one of those fellows had got him in the same position, under similar circumstances, they would not have left enough of him to rise from the earth, in fact, there would not have been enough of him for his friends to gather up with a shovel, so utterly thorough would have been the destruction of his tenement of clay.

Thompson, seeing that he was safe from further attack, contented himself by saying, "I'll git ye yet."

"Come," said Wade, taking Nora by the arm, "let us now be going. Forgive me for such unseemly conduct in your presence."

The girl did not seem to understand. Such as she had just seen she had been accustomed to always, ever since she first remembered anything that was going on about her. Never before had she heard an apology when one man knocked another down.

"Ye couldn't help it," she said. After a few moments silence she continued, "He'll kill ye shore, ef ye don't keep away from him."

"No, he won't, Nora. He won't attempt it again. If he does, well—that's something else. I presume he is a Rider, is he not?" She did not reply. "Come, Nora," said Wade pleadingly; "don't be reticent. Tell me all you can, being consistent, just as I have told you everything—all the contents of my heart to-day."

She could not resist the appeal. Tears were gathering in her eyes; they were the first Wade had seen in any eyes for a long time, and his own heart was touched. She opened her innocent life before him and told him all she knew. The women folks, however, did not know nearly so much as they often prided themselves as knowing. She believed he ought to know, more especially since the incident with Al Thompson, because it would be a sort of protection to him. He would know what to look for and how to bear himself.

"They aint a-goin' ter hurt ye, ef I can help ye," she said, sobbingly.

He understood her feelings perfectly well, and determined there on the wild mountainside, in the presence of the rugged hills and within sound of the running waters, to protect and aid this unopened wild flower of the mountain so long as he had power to do so, so long as this power lasted—so long as he had breath in his lungs.

This vow he faithfully kept. Men do things very often during life for which they are very sorry, do things which, in more conservative moments, bring on pangs of regret; but Jack Wade felt not the least regret because he had

knocked down Al Thompson. He did not regret that act, but a tinge of sorrow and shame ran through his soul as he looked upon the crimson face of his gentle companion. The advantage he had taken in her moment of weakness would, no doubt, stand him well in fulfilling the purpose for which he had quit a life of plenty,—a life of sociality, and had come to the lonesome hills to live in a cabin all alone to carry out. The burden of it all was burning his own soul and gnawing at the very vitals of the life within him. He was a man through and through, a man who could have gained the topmost heights of the most elevated, elaborate society, but he had sought instead the quiet life of the farmer, a life alone in a cabin away toward the hills of Kentucky, far from civilization. Beside him rode in perfect silence, broken only by the sound of the horses' feet falling upon the dirt, a child of the wilds, whose own heart burned her bosom, that heart which had in an unguarded moment unloaded all that was most sacred to her and to her own people, all that had been held dear to one who had been taught in only one way. She felt sorrowful, but that same power which bound her when Jack Wade was away kept her silent when he was near. The rocks of the rugged mountain ridge pointed to her as she passed, the little yellow wild flowers bowed their sweet heads in shame when her skirts touched them. She would not look at them, their beauty had in a moment flown. She would not look over the wild mountain scenery; its picturesqueness had departed. A dead shade rested over everything. She would not even glance up at the strong man at her side for fear his powerful gaze might pierce her heart as an arrow shot out from a strong arm. But why all this sorrow? He knew, he understood, and was silent. He looked toward her in silent admiration, and his heart smiled, but his lips moved not. To assure her was his thought, was the only motive of his heart, but he could wait until a calmer moment. The waters of life were troubled now, there was a storm upon the quiet sea, whose ruffled, wind-tossed waves were rolling high, and he must wait.

Behind them was the very hound of the devil, cursing and swearing uproariously. Every curse was an avowed vengeance, every breath foretold the death of someone. The murderous black eyes of the mountain wolf gazed on, the steel-like paws of the forest lion tore the earth where he lay, the savage instinct of an untamed Indian of primeval days filled his blood. The heart of the most ferocious beast was encased within his bosom, and vengeance, sweet vengeance, was his insistent cry. He rose from the earth

where Jack Wade had laid him with that powerful blow of his heavy fist, snorted like a hyena, shook his fist tragically after Wade and Nora, then crouched as a panther when about to spring upon an unsuspecting victim or an awaiting foe, leaped high into the air, and, yelling like a Comanche on the war-path, darted like a frightened hare down the mountain side in the direction whence he came, spitting out fire and brimstone as he ran.

"She's mine, mine!" he shouted, "an' ye needn't think she hain't."

Down the other side of the mountain now rode two beings who seemed farther apart than before they knew each other, yet whose hearts beat as one, and who were in reality closer together than any other two human beings on the great earth.

When Al Thompson opened his lungs and sent forth that unearthly yell which vibrated through the forest down in the valley, the girl caught hold of Wade's arm. She quivered, he felt the emotion playing over her being, and caught the soft hand in his own.

"Have no fear whatever," he said reassuringly. "He is drunk. When he comes out from under the spell once more, he will think nothing of this affair."

"Ye don't know him, Jack," she replied. "I warn ye agin', cause——" She stopped.

"Because what, child?" he questioned, noting her hesitation. "Speak what is in your heart."

"Because," she continued falteringly, "I don't want ye ter get hurt."

He smiled encouragingly.

"He won't hurt me, but I'll keep a close watch for your sake. If he gives me further trouble I'll put him in jail down in the village."

"Huh! that jail won't hold him; hit ain't never held a——one of these mountain fellers yet. That won't do; ye must hold him some other way."

"All right, I'll hold him some way, sure. I want you to feel satisfied that I am able to do it."

As they were nearing the house they saw old Peter Judson standing at the gate awaiting their return.

"I've enjoyed this trip with you, Jack," she whispered softly.

"No more than I have enjoyed it with you," he replied feelingly.

"And ther birds——"

"Whar's yer game?" shouted Peter as they rode up, both flushing red. "An' fer the land sake," continued Peter, "what makes ye look so durn funny 'bout ther eyes an' face? What in ther world's got hold of ye; air ye sick, gal?"

She was not very ill, she said. Indeed, she had never felt better physically, but——

The old man was fumbling through the saddle-bags in search of birds or other game. Wade could not suppress a smile because of the comical expression upon the face of the disappointed old man.

"This is ther durndest hunt I ever heerd 'bout in these hills," said Peter. "A half-day out, an' no game."

"We haven't fired a gun," replied Wade, "therefore have no game." The old man looked at Wade, then at his daughter. His disappointed expression was at once superseded by one of anxiety. Indeed, he looked very sorrowful. "But ye fired one good shot," he said sternly. "An ef ye intend ter be foolin', I want ter warn ye ter be a-lookin' out. Fun shots don't go in this hyar kintry." He appeared to be greatly agitated now, but when he learned the real circumstances he softened, and his eyes gave forth a tender expression. "Git down," he said, "chuck is put nigh ready. I'll put yer hoss up'n feed him, an' we'll have a old time talk 'bout everything, from ther days o' Goliath till ther days o' corn-huskin',—'bout which ye know mighty little, I reckon, ef I don't miss my guess a long way, by lookin' at ye."

Old Peter refrained from remarking just at this time anything touching upon the actions of Al Thompson, but many strange and peculiar thoughts were romping pell-mell through his heavy brain.

CHAPTER V

Dining at the home of a farmer was quite a new and novel experience to Wade, as there was no similarity to dining in a fashionable restaurant on a fashionable street in a large city. This was an experience in his life that he often thought of afterward. At one end of the table sat Peter Judson, to his right sat Mrs. Judson. In one corner of the stuffy little cabin dining-room sat a gray old cat on its haunches, appearing in every respect to be quite angry because it had been made to wait until the second table when it had been accustomed to eating with the family. Wade watched the cat, for it very often "licked its chops." Beside him lay Rover, the furry-headed dog, Nora's pet.

Jack was just as awkward at that table as the girl would have been had she been sitting down at a table in the greatest hotel in New York City. His manners and table etiquette were so entirely different that his actions did not seem at all right or natural. He sat like a boy who has been allowed to eat at the first table when his father had company. When Nora asked if he wouldn't take a piece of the "sow's belly," and he replied, "Thank you, I wouldn't choose any," she still held the dish before him until he took a slice. He sipped his coffee daintily, as a girl at an evening tea, holding the cup by the handle, while his little finger was extended high, and the girl gave him a cup-towel—"so's ther cup wouldn't burn his fingers" when he was drinking his coffee. He cut the meat off his chicken bone with his knife and put it into his mouth with his fork, causing the girl to blush because he was acting so ridiculous before her Dad and Mam, when she had really expected so much of him at this crucial time.

Old Peter would take about half his coffee at one gulp—this was more natural—making a noise like unto a sawmill when it is thoroughly busy. Then he would wipe his mouth on his shirt sleeve and take the coffee off his mustache with a sizzling noise. The climax to this long-to-be-remembered meal came when Wade put his knife and fork in his plate and picked up the scraps of bread and chicken bones and put them carefully alongside the knife and fork. Being unable to understand such strange conduct, Nora

stepped behind Jack and hid her face in a dish towel. We do not know just what she was doing behind the towel, but presume she "stole a sweet smile," as her face was very red when she finally came out of hiding.

They got through the meal, however, after a great length of time had elapsed, for they conversed about every thing, crops especially and folks in the city in general. Tom was off toward the village purchasing supplies and would not return, likely, until late in the afternoon, so Wade must content himself with listening to Peter Judson for at least a half-day. This he did, and he listened with growing interest. The old man knew of things that had happened away back yonder 'afore the war, and he knew about things that would happen at some future date. He had lived through one generation of feuds and thought "thar mout be tough times ahead fer some folks as he know'd of now, an' they hain't fer away, nuther," he said meaningly. "Why, jest let me tell you somethin', Wade," said old Peter, bending over and shaking his finger at the latter. "Way back yonder somewhar in the eighteens we had some mouty lot of trouble, that we did. Them was ther days when ther white caps or somethin' done things, and I hain't fergot it nuther, an' what's more, I hain't never a-goin ter fergit. I hain't that sort—ther fergit'n kind. An' ye'll find that out 'afore ye air hyar in this kintry much longer. Ef a man treats Peter Judson all right, he's a-goin' ter git treated all right back again. Ef he treats me mean, why, he's gotter look out fer his head, that's all. I kin remember onct away back yonder—I was on t'other side then—an' was as peaceful a man as lived, when I was a plowin' in my field an' up comes a feller as fast as he could ride a hoss, an' says, sayse: 'Peter Judson, yer gotter git out o' this kintry, an' that putty quick. Ef yer don't, yer neck'll be stretched.' 'Well, I won't,' says I, 'not till I git good'n ready, an' ef you ner anybody else thinks as how they kin make me git out afore I want to, let's see ther color o' his hair. An' I takes ther lines from my shoulders an' drops 'em down over ther plow handle an' squares myself, thinkin' maybe he'd want some of it right then an' thar. But no, what'd he do? He up an' put spurs to his hoss an' digs out down ther road lip-i-ty-clip, an' I seed nuthin' o' him no more."

The old man paused to let out a great stream of tobacco juice.

Wade threw his left leg over his right knee by way of change, and asked, "Was there any special reason, Mr. Judson, that this man should have

requested you to leave the country?"

"None. None 'tall, but I left."

"Oh, you did?"

"Yes, siree. I left putty quick after a while. You see, I hain't told you all of it yet. Them durn fellers come back one night, but I gits wind of it somehow, an' sends ther family away an' takes everything out an' puts ther stock in ther pasture,—nuthin's never hid from Peter Judson,—an' I lays out in ther bushes in a dark spot an' waits patiently. Long 'bout a little after midnight here they comes, 'bout a half-dozen strong, an' shot fire into my house an' barns so fast that afore I know'd what'd happened ther whole business was a flame o' fire. Seein' as how I couldn't do nuthin' ter save ther things, I jest waited till they gits through with their cussedness, an' then—what'd ye think? Afore they know'd what'd struck 'em I sent ther bullets from my Winchester a-flyin' after them like hot cakes, an' four o' them fell in their tracks, while ther two got away, an' all their hosses lit out down ther road, without riders, like lead shot out o' a cannon on ther field o' war."

The old man spat out another wad of tobacco and put a fresh plug in his mouth. There was some hesitation before he spoke again.

"You take it rather cool," said Wade, after a short silence.

"Gotter, my boy. Them was terrible times 'round hyar, but ef I calkerlate right, we air in ther midst o' jest sich another time, right now."

Old Peter Judson looked squarely into Wade's eyes, forcing the latter to turn his gaze.

"Ye air a young man, Wade," said Judson, "an' I want ter give ye some advice, fust class advice, an' yer better take it, too. When ye dig a hole fer some other feller, be shore ye dig it so deep he cain't get out'n hit, an' then"—Peter was emphatic—"be shore ye don't git into that hole yerself. Hit's a durn sight easier, Wade, ter start somethin' than hit is ter stop it after ye onct git it started. D'ye mind that now?"

"I believe I understand," said Wade, with a far-away look on his countenance.

"I'll tell ye agin, young man, that yer Uncle Peter Judson's been through ther fires o' hell 'round this hyar mountain, an' he knows what he's talkin' 'bout. Afore mornin' ye'll see that cabin down yonder all aflames, lickin' ther very sky in an effort ter eat up ther stars."

"What, mine, do you mean?"

"Ther same, boy. Why, what makes yer look so durn funny? Hit's ther solid truth, God knows, Jack Wade, yer own cabin'll be ashes afore another sun rises over ther mountain. Ye have made a enemy out'n Al Thompson, an' nuthin' this side o' hell could stop him from a-killin' ye, ef ye don't git him fust. Ye needn't git upon yer high spirits an' think yer kin stop it, fer ye cain't. A fawty-hoss power gatlin'-gun woudn't stop them savages to-night, so jest be easy an' take it natural like, an' ye won't feel so bad when hit's all over. Me an' Tom'll go down with ye after awhile an' help ye put everything out in ther field, an' move ther stock ter a place o' safety, so's ter fool them fiends that much—"

"I won't submit to it," interrupted Wade angrily. "I'll kill the man who tries to burn my property."

"That's what ye kin do, Wade, but ye must wait till some other time. I'd ruther take that rifle thar an' blow yer brains out'n yer head whar ye stand than ter let ye go down thar an' git killed without any show 'tall. Don't up an' git mad now. Ye'll see that old Peter Judson knows what he's talkin' 'bout. I've been in this kintry too long fer to not know. Ye've made a enemy out o' Al Thompson, an' he's a chip off'n ther old block, only his Daddy is worse nur him. He's worse nur the old devil hisself, an' they won't rest till they're torn the earth up around ther mountain, an' dug a hole deep 'nough ter put a dozen good men in."

Old Peter paused again, while Wade looked down toward the earth with a troubled expression on his face.

"What's the matter with the law in this country?" asked Wade, although he knew that law and order were unknown to these people.

"Ther hain't any law," replied Peter. "Ther law tried ter git out here onct, an' I seed old Jim Thompson kill two officers. I seed it with my own eyes, an' Tom a-comin' yonder saw him shoot one down in his tracks. They want no

more in town what'd tackle comin' after him, an' he's still hyar a-doin' business in ther same old way."

Jack Wade was considerably puzzled. Here was an old farmer, who he had calculated to shoot through the heart some day, now giving him advice which he thought would save his life—at least would save him much trouble. Here was a man who had just related to him that the Riders had at one time swooped down on him and destroyed his home and all else he had possessed save what he took out to the field; here was a man that rumor said was one of the very leaders of a band of lawless desperadoes who sought the lives of all good citizens of the community, now telling him of a man whose deeds were enough to turn the heart of a less brave man into a channel of terrible fear. This man was now trying to save his life, would himself rather put a bullet into his brain than see others do it or know that others had done so. That was friendship bordering on love. What kind of a man is he?

The mysteries of the hill deepen, the mysteries of the valley broaden. The closer he seems to have got to his desired end the further is he away from it. His plans seem crumbling to decay, his strong heart was bound in utter weakness. One glance from the firm, dark eyes of Nora Judson took all the manhood out of his soul. One touch of her finger tips made weak his stalwart frame. Now he must stand idle, in meek submission, while his sworn enemies burned his cabin and filled the air with their curses because they could not find the object of their vengeance and tear him to pieces bit by bit.

Jack Wade cursed under his breath and bit his lips till the blood flowed, as he looked down toward his lonesome little cabin home, which he had come to look upon as a true friend. His heart bounded in his bosom, his brow corrugated, his eyes danced and gleamed fire as he swore a second vengeance upon the perpetrators of this intended foul, heinous crime. The black demons of hell darted before his maddened stare, laughing joyously, dancing happily, because of his great discomfiture. He gripped the butt of his pistol, while his eyes lighted on a rifle, which he snatched up, then started off in lone defense of his own property. Nora, who had been watching him constantly, laid her hand upon his shoulder. The touch was like magic upon his wearied soul.

"Don't, Jack," she whispered softly, impressively. "Dad is quite right. Ye are sure to git killed ef ye go down there to-night."

Nora saw that Wade was filled with emotional indignity. For a moment he was about to shake loose from her grasp, but he felt her grip on his arm tighten.

"For my sake, Jack."

He turned and looked into her eyes. The light of real love shone from them, and a thrill ran through his being.

"For your sake I'd better go," he said.

CHAPTER VI

Mounting his horse, Al Thompson rode rapidly along the ridge of the mountain, with hot breath of hate steaming from his extended nostrils. His soul cried out loudly for revenge, and he meant to fulfill its desires though he brought all his friends into the quarrel. He meant to murder the man who so grossly insulted him and belittled him in the presence of the girl who was more to him than his own life, more to him now than she had ever been before. As the road grew less rugged he stiffened his pace, beating his horse over the flanks with his hat, until he finally broke into a dead run. On he went with the breath of fury still flying from his dilated nostrils, infuriated the more by the low hanging limbs, until he reached the stream at the base of the mountain, crossed over and turned up the main road, putting his horse to his best, when he came in sight of a cabin, the very sight of which seemed to lend strength to his tired body. He let out a terrible yell and fired his pistol into the air to attract the inmates of the cabin, who, upon hearing him and the pistol shots, rushed out feeling that a terrible calamity was about to befall them. When they appeared in the doorway Thompson cried out in an old, familiar way: "Git ready. Ther old rock on ther mountain top—midnight. The cap'n says be thar shore."

"Who's ther victim?" cried one.

"Ther newcomer," answered Thompson.

"What?"

"Shore."

Thompson was off again in a dead run before more questions could be asked. These cabineers had heard the call from the same voice before, and in the same manner, therefore did not hesitate to prepare. Thompson reached another cabin, and went through the same maneuver, and a third, the resultant effect being the same in every instance. He was quite satisfied. His lying tongue had done its work and the outcome did not worry him in

the least. His heart and soul joined in crying for revenge, and it should come at any cost to others.

When the appointed hour of the night had come on, he, waiting until the last moment, would ride up, driving right through the waiting crowd, yell like a Comanche, and they would follow willingly. His plans were working well, his lying heart was satisfied. He snarled like a wolf which had found a piece of fresh meat.

The night was dark. Heavy black clouds obscured the vision of the stars. A clouded canopy overhung the entire world, the fierce lightning flashed and shook its fiery tints over the sleeping mountain. The thunder peals burst forth in loud report, the echo resounding down deep into the quiet valley below. Save for the flashing lightning and the pealing thunder all else was quiet. What a fearful night for a fearful deed! What a night for the use of a black-hearted scoundrel! What a time for deeds born of a charred heart!

Jack Wade made no effort to sleep; he did not retire to the bunk in the little room with Tom Judson. Old Peter did not wish to retire. It was in his nature to see the alpha and omega of such deeds, he wanted to see it all. Nora could not close her eyes in sleep, although prevailed upon to do so. No, Jack Wade's own burdened heart pervaded the quiet atmosphere about Peter Judson's home, and no one cared to seek rest. Even good old dog Rover discovered in the funeral-like few about him that something was about to go wrong, and went about from one to the other whining, looking questioningly into their faces. Wade walked up and down, to and fro, like a lion in a cage or a madman in confinement, so intense was his anger because he couldn't prevent that which Judson had predicted was sure to follow. He believed now that Peter Judson spoke the truth, there was no reason, as he could figure, for his speaking anything else. He believed Judson had warned him from his heart, because he wished to save his life. Why should this old reprobate of a murderer desire that he should live at all? He would not have warned other men, for he had done so at his own peril. The consequences even now might lead to his own death. The old man, who had been closely scrutinizing Wade's troubled face, opened his mouth to speak.

"Ye needn't take it so hard, boy," he said. "Ye kin build another cabin like that in a few days, after ye git ther logs an' lumber out, that ye kin, shore."

As old Peter was speaking there came even then, down from toward the mountain way, the wild yell of the Comanche.

"Listen," said Peter, blowing out his light. "Thar ye air now. Don't say a word nur make any noise. Let 'em go on by, a-thinkin' we air asleep, an' ye'll see a putty sight soon. The fiends! the fiends! They're bent on a-killin' of ye right now, Wade, an' gloatin' in their hearts cause ye air mout nigh dead, so they think."

The well-known clatter of the horses feet came nearer and nearer. Old Peter stepped up close to Wade and laid his hand on his shoulder reassuringly. On the other side of him Wade felt the warm breath of old Peter's daughter, as she hovered close to him. She was consoling him in her kind, simple way, and he thanked God in his heart that it was so. Thus they stood, waiting, while the lightning flashed fiercer and the thunder peals grew louder.

Slowly the rain began to descend. Then suddenly, in that terrible moment of anxious quietude, there burst forth through the midnight darkness a faint ray of light which soon appeared a flame of fire, leaping and dancing exultantly.

"Thar ye air," exclaimed Judson. "Yer cabin'll be in ashes afore mornin', jest as I told ye awhile ago."

Silently the watchers watched, knowing full well what was in the heart of Jack Wade. It was useless to try to hold conversation during that awful period of suspense. Jack watched his little cabin burn, while the flames, cracking and roaring, seemed to touch his own heart and set it aflame also. The growing vengeance softened his feelings.

"Let her burn," he said, "but one soul shall burn in hell for this night's work."

"Mor'n one," whispered Tom Judson.

The significance of his remarks, however, was lost to Jack Wade, who thought only of avenging himself now. No thought for anyone entered his

heart.

For some time not a word was spoken, only watching; silently watching. The flames reached high into the air, lighting up the landscape back toward the mountain and over in the valley, although the cabin was a small one. The yells of those revengeful men rent the midnight air while all that was dear to Jack Wade was fast going down to ashes and utter ruin.

The horses' feet beat a heavy clattering retreat back up the road. When they passed Peter Judson's cabin Wade slipped noiselessly out into the darkness, struck the road and started, on foot, rapidly after the fast retreating horsemen. He knew it would have been folly under ordinary circumstances to have tried to catch up with them, but he figured they would soon strike the roughest part of the hill where horses could not travel fast, and he might by traveling rapidly catch up with them before they left the mountain road.

Old Peter Judson did not realize what the young man contemplated until he was too far gone. When he came to a realization of the truth he swore a blue streak and started out in search of "ther durn fool," who, for some unknown reason, he had come to like.

Jack Wade could hear the clattering noise of the horses as they rushed over the rocky way. Fainter and fainter the noise grew until he could hear it no more. Undismayed, however, he trudged on, in the hope of soon finding some trace of those he pursued. The heavy raindrops pelted down upon him, soaking his clothes until their weight became a burden to his tired and weary limbs. On he went, regardless of distance, picking his way by the light of an occasional flash of lightning, which made it more necessary to grope his way when the lightning failed to give the needed light, until when the gray streaks of early dawn appeared in the eastern horizon he found himself many miles away from his burned cabin. Yet he had discovered no trace of the perpetrators of the foul deed, whom he had followed for almost half of the night.

Water soaked, tired and worn in body and mind, he remembered that he had not slept for twenty-four hours, nor had he eaten anything, save a lunch, for nearly as long. Weak and sore of foot, he sat down on a little hillock and leaned his head back against a boulder to get a little much needed rest before attempting to start on his return journey homeward. As he sat thus

the dawn grew brighter, the streaks of light in the eastern sky painting a few clouds a beautiful red. The mountain scenery was still wrapped in silent mystery. Soon birds began their chirping songs from their abode in the thickets, and all wild life was beginning to stir. Dew-dipped grasses began to raise their heads to the breaking light in obedience to the will of day, while the great heavy overhanging clouds were fast dispersing, giving way to the power of the coming dawn.

The strenuousness of the day and night before had weakened Wade's system until, when he closed his eyes against the growing beauty about him, he fell fast asleep; but his weary, laden brain kept moving on. Before him, in vision, the mighty lightning flashed, the great torrents of rain fell and engulfed him. Suddenly there burst before his darkened vision a licking flame of fire, from out of the midst of which came one bearing a long-bladed knife in either hand. He was snarling like a wolf and dancing jubilantly over his intended victim. The vision grew until the knives were being brandished over his head, and he knew that it would be only a moment until they should descend and his own heart would be cut in twain. He seemed powerless to prevent. The sight was so fearful that he became sick at heart and fainted away. His head bumped against a boulder, and he awoke with a start.

When he opened his eyes he saw standing over him in reality Al Thompson, with hand poised high in the air, ready to descend. In that hand was a long-bladed knife, sickening to behold.

"Damn ye," said Thompson, between closely clamped teeth, "ye escaped me somehow last night, but ye won't do it now. Ye mont as well say yer prayers, an' say 'em quick, fer ye air a goner. I'll tear yer heart out an' hang it on a pole an' take it back to ther gal."

Thompson raised himself a little higher until he stood on the tips of his toes, in order that the force of his blow might be felt more heavily. The knife started on its descending mission of murder.

Wade shuddered, he felt it was his last moment on earth. The carelessness of falling to sleep had given his enemy a great advantage. But no, Fate was to save him. A rifle shot rang out over the mountain stillness, the knife dropped to the ground, the band that had held it fell limp to one side. With a

cursing snarl and a howl of intense pain Thompson quickly picked up the knife with his left hand and was about to plunge it into the drowsy form of Jack Wade. Just at this juncture old Peter Judson burst through the undergrowth and, in a commanding voice, cried out: "Drap that knife, Al Thompson, or ye air a dead man right thar!"

Thompson, looking into the barrel of Peter's rifle, concluded that chances were against him, and allowed the knife to fall harmless at Wade's feet.

"Ye'll not be after committin' murder on the mountain to-day," said Judson.

"So ye're helpin' ther newcomer, Judson, air ye?" asked Thompson sullenly.

"No, durn ye," replied Peter. "I'm helpin' you, ye fool. I'm seein' fair play, too. Ye hain't satisfied ter burn up all a feller's cabin, an' everything else ye kin git at, but ye want ter commit a dogged, dirty murder right hyar afore my eyes. Ye git, now, Thompson, an' git quick."

Knowing that it would gain him nothing to argue with Judson, Thompson moved off, holding his crippled hand with the good one. Sending back a parting shot, he darted out of sight.

"Ye'll regret that act, Peter Judson," he said. Giving each of them a sullen look, he was gone like a flash.

"Ther dirty wolf!" exclaimed Peter, shaking his fist after the retreating form of Thompson. Turning to Wade he asked: "What made ye take sich a fool notion as this, boy?"

Jack replied evasively. "You have saved me, Judson," he said, "and I reckon my life is in your hands. Do as you like. By my own foolishness I might have died twice, yea, thrice, in the last twenty-four hours, but you have saved me."

"What one man does for another is not to be talked about," said Peter. "Jest ye don't be sich a fool any more. By yer foolishness, as ye call it, ye have got me in ther same boat 'long side o' ye. I 'low thar'll be no rest 'bout this hyar mountain till both of us is in our graves, fer I've waked up ther devil from ther deep o' hell this day shore."

"I'm sorry to have caused you this trouble," said Wade regretfully. "It may have been better had that snarling wolf——"

"Stop!" interrupted Peter. "Trouble o' this matter is ther kind I like best. Let 'em tackle us when Tom's got his shootin' irons on an' his shootin' eye open; he'll pick 'em off as fast as they kin come. Ye mind what I'm a-tellin' ye, Wade. It's jest as true as what I told ye last night, only they'll be a little more keerful 'bout ther time they take ter burn Peter Judson's shanty. Did ye know ye air ten miles away from home?"

Jack did not know this.

"Well, ye air, an' we'd better be a-gettin' back. Somebody'll bring some hosses out ter meet us so's we won't have ter walk very far a-goin' back."

"Must have been a long chase for one like you," said Jack.

"Well," replied Judson, "hit ain't so fer fer me as hit is fer you, I'll tell ye that, Wade. I kin stand more walkin' right now than any feller in this kintry. What'n ther world made ye go ter sleep when ye was on sich a jolt as this?"

Wade turned sharply on Peter. How did he know?

"Don't ax ther question," said Judson, judging of what was on Wade's mind. "I saw ye a long time afore ye woke up."

They heard the sound of approaching horses farther down the road, and in a few seconds Tom and Nora Judson hove into view with the mounts.

CHAPTER VII

Jack Wade's new cabin was built much stronger and a little more elaborately than the old one. It was not at all like the old one, nor was it put up in quite the same location. It was built some twenty-five feet eastward and faced the mountain, while the old one had faced just the opposite. Besides, the new cabin had a small porch attached, while the front of the old one was plain. Wade sat upon this little gallery, pondering over the events of the past, much bewildered in mind on account of the slow progress he had made toward his desired end, toward the fulfillment of his avowed designs. He was unable to reason out many things mysterious, one being the deep friendship for him that had sprung up in the heart of that wicked old man, Peter Judson. It may have been, he thought, because of the fact that old Jim Thompson had ridden hastily up to Peter's cabin late one day and yelled to Peter that "they was now enemies forever, an' ther war would last 'twixt 'em till one or t'other was dead with their boots on," and Peter needed consolation and friendship. Old Peter, however, had replied to Jim Thompson:

"Maybe ye want a little of it right now. Ef yer do, jest git down off o' yer hoss an' I'll give ye all ye want, ye beggar."

Angered to the toes, old Jim struck his horse with the spurs and rode rapidly away toward the mountain, firing back at Peter as he went. He would, no doubt, have shot Peter in his own yard, had he not seen Tom sitting in the cabin door with a Winchester lying across his arms, and he knew only too well that the aim of the slender youth was true. He knew well that, as old Peter had said, Tom would pick him off his saddle before he could even fire at Peter. Discretion, therefore, being the better part of valor, he bridled his anger and rode away without deigning to make reply to old Peter's challenge, cursing and snorting, breathing hot revenge against his enemies.

Wade knew of these circumstances; he knew that his own folly had brought about these conditions, and it was his human duty to aid the Judsons all he could, because they had been nothing but friends to him. The gleaming dark

eyes of that girl of the wilds were ever before him, he could not rid himself of their presence, try as he would. They were an everlasting companion, and he was not altogether sorry that it was so, for in his most lonely hours he looked out into the dreamy space and saw them, and they made him feel less lonely. He had spent much time with Nora, sometimes at her father's cabin, sometimes hunting over the mountain, sometimes angling in the brook, and sometimes up the country road between the two cabins. The old brindle cow had not quit getting under the wire,—at any rate, she got out very often, and always headed down the road, never toward the mountain. Probably she was a lazy cow and did not like the idea of a steep climb up the hill, though the grass was sweeter up that way. However that may be, she always went *down* the road. Constant companionship had drawn Jack and Nora closer together, and Wade was teaching her in such a kind way that she took no offense whatever. He brought to her new books to read, which she devoured eagerly as a child learning its letters.

When she was not busy with some domestic duties, Nora was out in some nook remote from the cabin devouring the contents of a book. She was an apt scholar and learned rapidly. She would say "ye" only when speaking in great haste; other times she said "you." In one book that she read the heroine was a country girl like herself, and would say "hit" and "ye" like she did, and she discovered in reading that she was not properly educated as to the use of language, therefore she applied herself the harder. She took special delight in this book, and read it the second time, being greatly pleased with the sweet little character, the country girl, who, before the novel closed, went off to college in the big city and, after a few years study, came home refined in manners and neat in dress. This same country girl was ever afterward her own model, because she became gentle and kind, and married the millionaire's son, to the satisfaction of all concerned. Jack Wade was in her mind's eye the very hero himself. She thought of him as a big-hearted, generously kind boy, whose sole hope was to benefit someone else, though he might be personally affected by so doing.

She thought of him as a great wise man who was spending his life out in the mountains for her special benefit. She thought of him by day, and when night came on, the hideous night of darkness, when her awakened soul longed for light, she thought of him. When her body passed into the oblivion of peaceful slumber she dreamed of him, of the man who had done

so much toward enlightening her mind and soul, who had brought her out of the darkness and set her upon a high pinnacle of knowledge, where light shone in on her benighted being and she saw. He had spoken to her of God, a great God, Maker of the mighty universe, as no one had ever before spoken to her. The light shone brighter from his eyes as he talked to her about things of which she had hitherto known nothing. The song of the little bird in the tree top, the little wild bird, sounded sweeter than it was wont in times past. Their notes came clearer and had a new meaning. Her darkened soul opened wide its closed windows and the light came streaming in until she saw through different eyes. Her interest in the wild, golden-headed flowers that grew in great profusion along the ridge of the mountain grew day by day, until she felt she must plant a garden of her own somewhere near the cabin, so that she could go out and work among the flowers and talk with them. Her very soul yearned for something new, something it had not felt before.

She was kind and tender toward her big brown dog, in which she now saw a true friend. They had always been friends in a way, but that way had been to kick him and speak gruffly to him. Those things she did no more. She did not kick the old brindle cow in the flanks and say: "Saw thar, durn ye! or ye'll git yer head knock off," but the rather she pushed her gently and spoke kindly to her. "Be very careful, Brindle, don't step on my toes or turn the milk over, I am not going to hurt you." So the old brindle cow saw and knew and quit blinking her eyes when Nora was near. She formerly began blinking when she saw the girl coming out of the house with the milk pails, because she had grown to expect a crack over the solid portion of her head before the milking process began. The consequence of a life of continued abuses was that she had formed a great habit of blinking both eyes when near one of the feminine gender. Not so any more. The old cow naturally wondered at the strange, sweet change, her own life was made the more peaceful because no one set the dog to biting her heels every time she poked her head around the corner of the barn, and she did not kick out her "hind" leg every time the dog came near, because the dog didn't bite her any more. They were good friends now. A cow has good sense, and can do a terrible sight of thinking when it comes to the way things are going on about milking time. Her teats were not whacked with a big stick on a cold

winter day any more because she did not feel like standing in one position so long, and peace reigned within her heart.

Nora's touch became more gentle and she squeezed the lacteal fluid from the bovine with more consideration, all the while humming sweet songs softly to herself, and the old cow heard and knew. She heard Nora say "father" when she spoke to old Peter. Only on rare occasions would she spurt out in the same old way with "Dad," and then be sorry because she had allowed herself to become agitated to such an extent. Everyone noted the great change, but none dared to speak, lest they should disturb her—except Tom, who chided kindly occasionally. They all knew and understood perfectly, and the knowledge was kept secretly in their own bosoms.

Jack Wade thought of all these things too, as he sat on his own little gallery looking wistfully toward the big mountain, with heart bowed in submission to the will of fate. Since his old cabin was burned there had come a great change in his own life. His desires had changed, his purposes seemed different, but he fought it all out courageously. Murderous design was still lodged in his heart. He longed to commit that deed, which done and within itself is a power to bring a man's soul to the deepest depths of degradation and sorrow, to the very brink of hell. His certain knowledge that the savage Al Thompson was only waiting an opportunity to drive to the hilt the knife that would pierce his heart, or from ambush send a bullet from a forty-four Winchester crashing through his brain, weighed upon his mind. These thoughts did not deter him nor move him one inch from his original motive, which, if life was spared him, would be fulfilled to the letter. As Wade sat gazing out through the bright sunlight the big brown dog, Nora's pet, came gliding silently through the gateway and paced up before him. He looked around quickly as the dog; wagging his long, hairy tail, stepped upon the porch.

"What omen have you brought to me this fine day, Rover?" he said, speaking to the dog, all the while rubbing his hand over the shaggy head. "What could have caused you to visit me at this hour?"

The dog just continued to wag his tail and lick the big hands that petted him. Rover had grown to like the big strong young man who was so often

with his mistress, and thought perhaps a call at this time would not be out of place.

"This country is terribly agitated just now. Rover," said Wade. "You must watch your mistress closely, and should you think any harm is likely to befall her, you must come and tell me quick."

The dog wagged his tail, seeming to understand fully what Wade was saying.

CHAPTER VIII

Up near the mountain no one ever spoke to another concerning anything that happened. Not a word ever escaped the lips of those sturdy farmers. If somebody was killed, that somebody was buried by his own people, and the wailing and gnashing of teeth was confined chiefly to the unhappy kin-folk. There were none to console them, no one condoled with them, they grieved in solitude.

In the village it was quite different, though even there no one dared to speak openly against an individual or a "click" or "clan." The fact that someone had been murdered by the terrible "Black ghosts of the night," or that the settlers had been terrified by the fearful, hideous howlings of the ravagers of peace, concerned everyone in the village, and old women talked of it over the fence, old men jabbered about it as they sat on dry-goods boxes, whittling on the soft pine boxes or squirting great streams of tobacco juice between their two first fingers, watching it until it struck the earth some six feet away or flowed gently down the boot leg of someone standing dangerously near. One old man, fearless on account of his many years in the country, did say once that "them damn Riders ought all to be hung by the neck until they were dead." When he had said that he dropped his head to spit, and when he raised it again he was alone, every man near him having slipped quietly away, leaving him to his own way of thinking.

Men gathered together up the valley way, but they talked farm products straight and "wunk" at each other in a knowing way. There was one farm upon which an immense tobacco crop had sprung up, and the eyes of every farmer in the community were cast toward it. Not in many years had so many men passed that way. Not in many days had there been so many clandestine meetings over the country, mostly around and beyond the mountain. What was it all about? It surely meant ill for someone, but for whom? That was the great question.

Jack Wade had gone to visit the city, Nora Judson was busy with her domestic duties, and Tom had gone on a jaunt over the hill, while the

warehouse operator remarked to his companion that he had been appointed special officer, that the regular officers were afraid of their shadows, and would not move a peg, and the Nightriders were gathering again and destruction was imminent. It had been mere chance that had put him next to the business that bid fair to bring much sport, and he was going with his trusty rifle and faithful horse to see if he couldn't arrest a Rider before morning. As he was in sore need of a companion, he invited his friend to accompany him. The matter looked so feasible, and as the Riders had given both of them so much trouble, he consented to go along as an assistant to the appointed officer. Of what was to happen he received perfect knowledge from the warehouse man.

Wade also was deeply interested. A certain barn with its contents of high-priced tobacco was to be burned by two lone Nightriders, and this fact—that there would be only two—was hailed with great pleasure, for the chances would not only be equal, but the advantage was decidedly with the officers, as they were cognizant of the raid contemplated, while the Riders were totally in the dark regarding their knowledge or identity.

The arrangement was that they should meet at a certain place and proceed out of Guthrie to a given point some distance out and some distance still on the other side of the mountain. Wade knew the exact spot where they were to locate themselves in hiding until the Nightriders should pass, and he also knew what their intentions were after that. His great longing to learn something more of the terrible Nightriders, and of the manner in which it was expected they would be handled on this occasion, caused him to make a hurried trip back to his own cabin to make hasty arrangements for a long ride through the darkness of night. When his clock tolled the hour nine he began that tedious lonesome ride down the valley. Uppermost in his mind was the movements and actions of the Nightriders, who had become active again and who were threatening with utter destruction the entire country, composed of twenty-two counties of the richest soil in Kentucky and Tennessee. Notices had been posted everywhere, giving warning to the open raisers, stating that no man should attempt to sell tobacco openly, that he who was not for the association was against it. One was found on Wade's own gatepost, and he gave it deep, thoughtful consideration. He had fully intended raising a very large crop of tobacco the coming season, and he

intended doing it openly, unless his mind should be changed in the meantime.

Wade rode on, putting his horse to a trot, then as time went by, to a gallop. Had it not been for the brightly shining little stars the night would have been utter darkness, but the twinkling little heavenly bodies lighted the way sufficiently well to allow of seeing and keeping the beaten road. Thoughts concerning happenings of the past were flitting rapidly through Wade's brain, tumbling one over the other in rapid succession, in their great hurry to get through, while he traveled on, unmindful of the awful darkness that encompassed him or of the blood-curdling deeds which would be committed on that memorable night. At last, tired and sore, he reached the vicinity of the barn soon to be burned and the vicinity of a community where murder, foul to some and gladsome to the hearts of others, would soon be committed.

Jack Wade had learned through his experiences of the past to be very cautious on all occasions, more especially on occasions like the present one, therefore he sought out a quiet dark spot in the brush and waited silently to see what should happen. The distance he had traveled brought him very late at the goal, so he was compelled to wait not long before he saw sights enough to weaken the heart of the strongest man.

The little stars twinkled on from their orbits in the sky, the cuckoo sang from a remote distance, the woodland animals scampered over their runs, making the dry leaves crack as they flurried on. Suddenly a faint light arose over the woodland, and grew until it lighted up the whole country around the anxious watcher. It became so very light where he was that he was compelled to recede deeper into the underbrush. The great flame grew brighter and higher, leaping heavenward at every bound, making a terrible, cracking noise. Wade's heart beat heavily against his bosom, but he watched on. Not a great way off he heard the cracking of the dry twigs. It was much heavier than the noise made by scampering animals, and he knew instantly that the two officers were near. He continued to keep silent, listening breathlessly to every sound. Soon there came to his listening ears the heavy sound or clatter of rapidly retreating horses. The riders passed his hiding-place and on they flew, pushing their horses to full speed over the rough trail. Then, "Oh, God!" In the next moment there rang out upon the

midnight stillness the terrible "crack!" of a death-dealing rifle, and in response a boy went down to the earth heavily. Some mother's idol received a wound that would take him hurriedly into eternity. His horse sped on, riderless. Another "crack!" from those rifles and the other horse was killed in his tracks, falling near the dying lad, while his rider, untouched, unhurt, darted off into the thick sheltering brush and was seen no more.

Those who had fired the shots that caused death and sorrow, weeping and wailing, listened not to the wailing of the dying boy, heard not his pitiful moaning, nor his distressed cry for assistance, but thinking of themselves dashed off through the brush, to safety, in an opposite direction. They had *got a Rider*, and were evidently well satisfied with their night's work. *Fiends*, may the tortures of hell be theirs!

Jack Wade, born with a love for his fellow-man, did hear and heed that dying wail, and slowly led his own good steed out from his hiding-place and on to the groaning one. He bent over him and looked into his contorted face with a heavy, sorrowful heart. He was not dead, but dying.

"Friend or foe," whispered the youth, as Wade appeared over him.

"Friend," replied Wade.

"Then you didn't shoot me?"

"No. Thank God, I didn't shoot you, lad." Tears were gathering in Wade's eyes.

"I'm glad you didn't, stranger," said the lad. "I'm Fred Conover, and I'm dying now. I can feel the cold, clammy sweat of death gathering over me, my eyes are blinded until all is dark. I know that the death call has been sounded to me, and I am going, going, but I am dying for a good cause." He gasped his words now. "Stranger," he whispered, softly, "you may not be a Rider—you ought to be. You may not be in open revolt against us—you should not be. Listen, stranger, listen well to my last words on earth, that you may carry them to the heart of every man in this community, to the heart of every well-thinking man in the world, that all the world may know we are right. My father was once a well-to-do, honest, faithful farmer, but the trusts and combined wealth put his nose to the grind-stone. I must speak quick. But for them we could have lived nicely and comfortable. They took

everything and forced—stranger, help the Riders, for in doing so you are helping the poor people, the struggling millions. You are helping the widow and orphans, you are helping those who must die of starvation unless the fight is kept up a few more years. Tell them I died willingly for them, that my heart is with them in my dying moments; that I shall carry the burden to God; that I do not hesitate, have no fear, and tell my father——"

The boy threw his head back, raised his breast, then fell to the earth once more. Jack Wade raised the lad's head and placed it gently upon his own limb, that he might remember he died there. The small bottle of whiskey which Wade took out from town was still in his pocket and he gave the boy of it to drink.

"I thought that was my last moment," said the boy, after sipping the whiskey. "I feel quite relieved now. They are mean, stranger," he continued, with a catching breath. "Those fellows will raise tobacco for the trusts, and *must* be handled severely. I do not regret my action, I do not regret that my last act was to apply the torch to yon burning building. No, I do not."

Here was an opportunity, Wade thought, to learn something of interest, so he placed his lips close to the dying lad's ear and asked if he knew John Redmond before he was killed.

"I knew him well," he replied, gasping for breath, "and he was the grandest _____"

The head fell limp, the boy breathed his last. Fred Conover was *dead*.

Immediately the surroundings took on a death-chamber appearance. Wade removed his limb from beneath the dead boy's head and laid him gently upon the cold, damp earth. Beside him was the carcass of the big black horse which fell dead at the same time the boy went down. They were both dead. The pall grew heavier. Wade raised himself, looked at the horse, then into the deathly pale face of the boy, raising his head slowly until he looked into the heavens, then said:

"O God, Thou great God, Thou hast, through thy mercy, saved me from this awful deed."

He let his head drop again.

"That was a dog of a deed for an officer to commit," he said mentally. "It was nothing but cold-blooded murder. Why did he not show himself and make an effort to arrest, rather than do murder in this fashion, the dirty coward!" said Wade, with a wave of his head. "You are free just now, but freedom shall be taken from you for this night's ghastly work, for this foul deed which has taken from earth all that was dear to a good mother and father. If you hang"—Wade shook his fist toward the brush tragically—"the shame and sorrow shall fall upon your own head and heart."

Throwing his coat over the dead form, Wade drew it to one side and departed.

CHAPTER IX

Wade was very excited in thought and action as he rode out through the darkness of the night to go to the home of Fred Conover's father. He had covered the body with his own toga, and he felt the necessity for it as he split the cool night air in his great haste to get the news to the old father, whom he would surely find waiting anxiously to learn what success the boy had met with. Unmindful of any danger to himself, though the country was well stirred up, he raced on, looking neither to his right nor to his left, but kept his sight straight ahead and his thoughts far beyond. He shook his head gravely as he pondered over the events that had transpired, were transpiring, and would transpire in the future. He knew now much more of the conditions confronting the poor farmers of this part of the world, knew of the terrible struggle into which they had entered for the mere maintenance of their own immediate families, knew more of the feelings existing among them, and wondered no longer that they had taken such desperate means to relieve themselves of the yoke of bondage which had been placed upon their freedom, to tie them to the heart-eating trusts, which were dogging out their lives, eating to the marrow of their bones.

Wade had now reached the rise of the hill. In front of him, a little way beyond, was a dense thicket through which he must go. He went on, regarding not the deeper gathering gloom nor the many dangers accompanying. As he neared the thicket he was suddenly confronted by a night prowler, who commanded him to halt. This he did immediately, without hesitation, while he was in his present state of mind, not desiring an encounter with anyone.

"Git down, quick," said the voice of one who held the bridle at the horse's head with one hand, while a pistol held by the other hand was pointed directly at Wade's breast.

For a moment Wade was on the point of reaching for his own pistol and fighting it out, but as his hand started back he heard the command: "Ye needn't do that. Ef ye make a move I'll blow yer brains out."

Wade now reached the conclusion that he was being held up by a highwayman, and the best thing for him to do would be to comply with his request, for he knew that these fellows in this country, highwayman or Nightrider, were as desperate in character as the most blackened criminal the world holds. He got quietly down.

"Now," said the captor, "turn yer back to me."

Reluctantly Wade did this very thing. He had some little misgivings in doing so, for he might be shot in the back.

Not so. The midnight marauder merely took his pistols from his pockets, placed them in the saddle-bags and got quietly upon the horse. Turning to Wade, who stood disconsolate, he said: "I'll return yer hoss, stranger, an' thank ye fer the use o' him, till I can git one o' my own." Then he galloped off as though nothing had taken place, never looking back again.

Awe-struck and indignant, Wade stood beneath the shining stars for one moment just as he had been left, gazing intently after the fast fleeing horse and his mysterious rider, then resumed his journey on foot. He reproached himself that he was a great "mummy," that he had come into this country on an errand of revenge and had placed himself more than a half dozen times right between the jaws of his enemies, between the snapping jaws of death. He figured that fate must have thrown a strong guard around his life to save him for a special purpose. All these thoughts came into his mind as he trudged weary and footsore across the rugged country, picking his way as best he could under the circumstances.

Instead of trying to make his way direct to Conover's farm, he turned in the direction of his own home, and at some time just before daybreak pulled up at Peter Judson's gate, where he "helloed" until old Peter, with rifle in hand, showed himself at the door and cried:

"Who air ye, that wants ter bother a feller at sich a time o' ther mornin'?"

"Wade," came the reply.

"Oh!" exclaimed Peter. "Come on in, boy. What'n thunder brings ye at sich a hour as this?"

"Didn't you see the fire?" returned Wade.

"Sure. Did ye think I didn't know it would be?"

"I didn't know," replied Wade, "but I thought I'd tell you that Fred Conover has been killed, and——"

"Thunder, ye say!" interrupted Peter. "Thunder, ye say!" he repeated. "What do yer mean by tellin' me that, Wade; is it really true?"

"It is really true, Judson, and I thought I'd come by and get Tom to go over to Conover's with me to give the news."

"Ye needn't, Wade; they'll have it long afore ye kin git thar with it, an' besides ye cain't git Tom fer anything fer awhile. He's been shot through ther leg."

"What!"

"It's true, too, Wade. I told ye what'd happen when we went after them Thompsons. It's war ter ther death 'twixt us, shore. Tom met old Jim an' 'nuther feller over ther hill ter-day, an' ther fun commenced right. They both opened fire on Tom, but he didn't budge a step till he'd throwed old Jim flat o' his back, an' he'd a-throwed t'other feller, too, ef it hadn't been fer that sneakin' Al, who slipped through ther woods like a snake a-crawlin' on his belly, an' let in on him, an' shot him through ther leg. Seein' he was shot an' bleedin' putty bad, Tom lit out fer home, 'thout seein' what'd happened after the smoke o' battle cleared away. Me an' the good gal, hyar, a-hearin' of ther shootin', pitched out over ther hill with our Winchesters, jest ter git a little o' ther fun while hit was a-goin' on, an' we seed Tom a-comin' an' a-fightin' back, with his shot leg a-hangin' loose over the hoss. Me an' Nory give a Comanche yell what they knowed, an' when them durn fellers heered us they turned heels an' took out t'other way 'bout as fast as ye ever seed anybody git over ther mountain in yer life."

Peter Judson told of these circumstances as unconcernedly as if it had been play. It was real fun to him. The noise of battle suited him much better than the quiet of peace. Turning to Wade, he asked, "What did ye do with yer hoss?"

"Someone held me up and took him from me," Wade replied.

"Ye don't know these people yet, Wade," said Peter, after a moment of silence. "Don't ye know that hit was Fred's pard what tuck yer hoss? An' he's done spread ther news over ther whole kintry by now, an' long afore ye got out o' ther woods. Ye needn't bother 'bout goin' over. Ther old man'll be so wild when he hears o' this that he'll want ter kill every feller he meets. Ther committees what sent them two boys out on that job oughter have their own necks strung up ter a tree, that's shore. That's what oughter happen ter them. Now, yer needn't worry, Wade. Ye'll git yer hoss back all right. I'm shore o' that, an' ther shootin' irons, too. Seems like hit ain't no use fer ye ter have any shootin' irons, 'cause ye never have used 'em, yet, have ye?"

"Doesn't look as though I have any great use for them."

"No, hit don't, Jack. But ye mout use 'em sometime. Better have 'em along anyhow, when ye meet a Thompson, 'cause ye air shore ter need 'em then. Now, Wade, I reckon ye hadn't better git angry 'cause that boy borried yer hoss. Hit won't do ye any good, an' hit mout do ye harm. Ye'll git him back agin. Tom won't be sore long, an' when he gits well 'nough so's he kin git 'bout a little, ye kin listen out fer ther crack o' rifles in good shape. Come on in an' we'll git somethin' ter eat, after hit gits good'n daylight. I want ter have 'nuther talk with ye, sorter face ter face like, afore ye leave me agin. This durn kintry is stirred up from ther top o' ther hill ter ther bottom o' ther creek, an' then some on t'other side, an' ye'll see some hot flames, one after t'other, an' hear o' how hell is raised, an' see many fellers turn up their heels afore long, ef I don't miss my guess putty bad. Them trust fellers is determined ter drive us all out o' ther kintry, or see us go ter ther graves as poor as Job's turkey—however poor that was—an' they do say that they was mouty poor; but, by gad, they'll have a tough time a-doin' of it! Ther bother of a feud with old Jim Thompson an' his mean gang hain't nuthin' long side o' what's a-goin' ter happen 'bout hyar soon. Ther worst o' ther whole thing, Wade, is that ther air so many in ther association what'll raise terbacker fer ther trusts. Them's ther fellers as is ther hardest ter go up agin, an' ther ones as oughter have ther neck broken. They'll sell ther stuff fer three an' six cents a pound when they mout as well git eighteen an' twenty fer ther same terbacker; but no, they'd ruther go ahead agin everybody an' agin therselves, an' sell cheap. They'll have a time a-sellin' that terbacker this year fer that

price. We cain't raise terbacker fer five cents a pound an' come out even, let alone makin' a livin' out'n it. Ther durn fools!"

Old Peter Judson generally warmed up when talking over the tobacco situation, and he cared but little to whom he was talking, nor who heard him, when he used rough language. His greatest expression was "Ther durn fool!" and when he exclaimed in that fashion he was generally done with that subject or person.

"They'll git ther fill of it all right this season," Peter continued, after a pause, wherein he caught a second breath, "they'll git plenty of it. Why, let me tell ye, Wade, what happened one time, an' I'm a-tellin' ye fer yer own good. I don't want ye ter git yourself inter that deep hole what I told ye 'bout one day, ther time I told ye a feller mout git inter his own hole, remember?" Jack did remember. "Well," continued Peter, "there was a feller onct,—an' he's over t'other side yet,—by ther name o' Mike Donovan. Mike is a old Irish settler, 'bout ther fust ter come hyar. Ye've heerd o' him, no doubt. Well, he tuck a hot Irish notion in his thick head ter run things his own way 'bout hyar, but ther balance o' ther farmers wouldn't have it that way 'tall. They tried their level best ter git old Mike to join the association, but he got hard-headed an' said he'd be durned ef he joined any sich association o' fools as was scattered 'bout this valley; that he'd raise as much terbacker as he wanted ter hissself accordin' to his own feelin's in that, an' he'd sell hit ter who he wanted, an' fer what he wanted ter. Now, Wade, ye know well 'nough that ther farmers cain't go agin sich hard-headedness as that an' win out, 'course ye do. Any fool'd know that, so they begged him ter quit his foolishness an' join ther association like a good feller, an' git more fer his trouble o' raisin' terbacker; but ye know how a Irisher is on that point. They won't give in ter nobody fer nuthin'; so he wouldn't come in. Well, in the course o' time he done like he said he would do, an' raised a big crop o' terbacker. He had a notion that he'd fool everybody 'round hyar, an' he did try it. A committee was 'pinted ter call on him once more an' ax him fer to quit, but he wouldn't. He went on an' raised ther terbacker an' made open threats that he'd take it ter town on a certain day, in wagons. He tried it all right. Ther committee, ter give him 'nuther chance, called on him agin, an' tried ter git him ter keep his terbacker in his barns fer a little while longer, but he just perlutely told ther committee that they could go ter 'h,' followed

by an 'e' two 'els.' Now, Wade, that feller loaded nine wagons with good terbacker an' started off to Hopkinsville with it."

Peter Judson paused again for new breath.

"Did he get there with it?" asked Wade interestedly.

"Git thar, did ye say, Wade, git thar! Ye durn fool, d'ye think them farmers'd have their plans spoiled by that old hot-headed Irisher? No, he didn't git thar with it. Do ye mind ther old-fashioned zigzag rail fences in some parts o' this kintry?"

Wade remembered having seen them.

"Well, at a certain turn in ther road whar ther fence is built out o' 'em, a powerful gang o' good farmers met Mike Donovan an' his fine train o' terbacker, an' axed him ef he wouldn't please be so kind an' turn back with it an' store it in his barns a little while longer. 'No,' said Mike, 'I won't,' an' he whipped his horses an' said, 'Git up!' But them horses couldn't budge a inch. 'Turn back,' said ther leader. Mike jest sot thar an' never moved. All ther time men was a-gittin' them rails off that old rail fence an' a-pilin' 'em up in ther road. Still ther stubborn Mike Donovan wouldn't turn back. They kivered him with a forty-four Winchester, while one wagonload o' terbacker was piled on ther rails. 'Will ye turn back, Mike?' they asked. Mike said never a word. 'Nuther load was piled on ther rails, an' a row o' rails on top o' that, an' they axed Mike agin ter turn back. He jest stood thar a-sullen. Every load o' terbacker was piled on ther rails, one row o' rails an' one load o' terbacker, an' still old Mike wouldn't give in. Well, ye kin guess ther rest, Wade, cain't ye? No? Well, that was one o' ther puttiest fires I ever seed, an' ther air was so full o' pure terbacker smoke that some o' them told me they didn't have ter smoke their pipes fer three or four days after that fire. All they had to do was to git out on their porch, raise their head a little an' draw in a good long breath, then spit her out, an' they was done smoking fer a while. Mike Donovan—did ye ax what 'bout him, ther durn fool? Course he turned back, but he didn't have no money, nur any terbacker ter store in his barns."

Daylight was approaching and Peter, looking in the direction of Jack Wade's cabin, exclaimed, "Thar's yer hoss now, Wade."

CHAPTER X

Is the longing of the human soul but a delusion? Does it catch the fragrance of immortality, as the little honeybee catches the fragrance of the dew-dipped mountain flowers, and reach out with a longing far beyond human ken?

Jack Wade sighed as he sat out on his little porch gazing through the sunlight to the eastward. Far away, yet not so far, loomed the outline of the Cumberland, as a shadow rising out of the mist, towering above the lesser mountains nearer. All round him in his own community men were making silent and cautious preparation for some unknown deed. Beyond the hills, where the agitation was greatest, men were making preparation for terrible destruction. Orders were being sent hurriedly through the country, the courier being unknown and unseen.

Wade knew that the messenger of destruction, if not death, was "the Wolf, Night-Watch," the very person whom he had long been looking for and feeling for, but to no avail, for he had found him not. The very men whom he would have at one time killed on sight, had he known then as much as he did now, were those who had on more than one occasion saved him from death, men whom he now believed had wound themselves so thoroughly about his heart as to cause him to love rather than hate them. Through his mind ran thoughts of things that had been done so long as to be almost forgotten by others, but they clung to his memory as a reminder of what men would do again. In his heart was nothing but hatred for the man who shot Fred Conover to death, and he would far rather put a bullet through his heart than any other man he knew, even Al Thompson. Thompson, he knew, was always somewhere about looking for him, that he might put a bullet into his brain or a knife into his heart.

Wade was to the Judsons a seemingly fast friend, and therefore must be firmly against the Thompsons. Regarded in this light, it was only necessary to meet one of the avowed enemy and someone would go out of this world of trouble.

Time passes swiftly over our heads. It won't wait for any human being. The pace of humanity is entirely too slow for old Father Time, who only looks once as he glides swiftly on. Things can't all happen in a day. Sometimes one could look out through the darkened gloom and see away in the distance the brightness of a flame leaping high and sending great sparks heavenward. Some poor deluded human being, some weak human being, was no doubt losing all of his earthly possessions—his tobacco crop. Sometimes one could listen out over the star-lit earth, when all else slumbered peacefully in the very arms of nature, and catch the faint report of a rifle shot; and had he been nearer to the scene of the conflict could perhaps have heard the groan of a dying soul as it made its last farewell gasp and flitted into eternity. Such is life where strife and turmoil are uppermost in the human heart and mind.

Wade looked back for one moment over the vast expanse of the past and saw all; then he closed his eyes and looked into the future. It was all blank; his mind kept to the present. For one moment he was gazing into the dark eyes of Nora Judson, the next into the translucent waters of the little brook on the banks of which he had sat whiling away many happy hours beside the girl who was such an ardent student of nature, and in whom he had never dreamed there could have been so much hidden beauty and real wisdom. Slowly had she ascended the ladder of knowledge, through his personal instructions and the books he gave her, until she stood on the last round on the tips of her toes, reaching far out into the unknown in eagerness to grasp what she believed lurked there. She was fit to be a queen, to be the companion of the highest man in the land.

On the other hand, Wade had gained no actual knowledge nor wisdom. He had, however, gained a knowledge of nature which could not have been impressed upon him through the mere reading of books. He had gained a knowledge of the great necessity of higher education; he had gained a certain knowledge of how desperate men would struggle for what they believed was rightly their own, how they would lay down their lives for the principles which they thought were just and true. Such knowledge is well gained, and assists the educated and enlightened to a higher plane of equal thought. The person who never reads has no knowledge of what is going on in the outside world, and we dare to say that the person who reads only knows nothing of the great struggle going on in the hearts of the down-

trodden farmers whose lives have been made burdensome by the great evil, the greatest of all other evils, the powerful trusts, trusts which hold at the throat of every farmer a great, sharp knife, one so sharp that it is useless to move forward or backward lest life become extinct. The farmer does not stand alone in the path of this terrible evil, though he has taken the brunt of the battle in an effort to unburden all humanity of the awful weight of this heavy yoke, bearing down on the poor of the entire country with such crushing force that the time has come when one can hardly maintain an existence so strong is the yoke and so securely has it been fastened around the necks of humanity everywhere.

Jack Wade thought of all this, thought of all that had happened. Above Tom Judson was lying in bed with a bullet hole through the fleshy part of his left leg just below the thigh. Across the brook old Jim Thompson was lying in bed writhing in agony because of a bullet hole through his right shoulder. This was the result of conditions brought about by the everlasting drudgery of mankind.

In both cases the patients were rapidly mending, the danger point long since having been passed, and each was cursing the other and swearing revenge. Wade sat with heart and head bowed, therefore did not know of the approach of Rover, his good friend, until he felt his furry head rub against his hand.

"Good friend," he said, looking into the eyes of the great brown dog, "when you come to see me in this manner I always look for disastrous results. What can it be now, old friend? Is your mistress well, or has a calamity befallen her? Is her brother worse, or what has happened?"

The dog wagged his tail in a friendly fashion. Suddenly he looked toward the road and barked. Wade glanced hastily in the direction indicated by the dog's head and there, grazing leisurely beside the fence, was the old brindle cow, the cow that had in times past brought him in close touch with the once wild flower of the valley. A spark of joy leaped into his sorrowful heart, for he knew that the mistress of the valley would soon come in search of the cow, and he would be happy then. With eyes cast in the direction of Peter Judson's home, he still sat thinking, just thinking, unconsciously smoothing the hairy head of the good old dog Rover, who seemed perfectly

satisfied to sit on his haunches and listen to the tinkling of the cowbells as the cows munched grass lower down in the valley. Roundabout the little wild birds were singing sweetly in their freedom, their joyous notes swelling through the gathering gloom. No thought of trouble was in their hearts, no sorrowful gleam came from their eyes. All was bright sunshine in their lives. What if some poor wanderer was going to be murdered that night? What if some luckless farmer should have his home burned from around him or his horded tobacco and corn destroyed? What if some child or its mother should wail out their sorrowful notes of discomfort and grief before another day's sun shall have risen? Those things are nothing to the lonesome little bird, which would continue its silent slumber through the awful din of fire-fraught flame, or through the loud reports of many rifles, or the yelling of the infuriated Riders as they rode hastily through the midnight darkness on to do the terrible deed and bring suffering to many unsuspecting victims. Those things were nothing to them; they sang on gleefully. But the harmony of their song soon died away, for there came through the stillness of the moment the soft sweet tones of Nora Judson's voice as she wended slowly down the road in search of old Brindle. Rover flopped his ears and wagged his tail, while a gladsome whine emanated from his throat.

Wade, followed closely by Rover, went out to the road to meet Nora. Jack smiled as he extended his hand; she smiled also, then laughed heartily, the echo resounding down through the woodland and back to the hills.

"Are you going to assist me to drive the cow home?" she asked sweetly.

"Provided you don't get in a hurry," replied Jack.

She didn't blush as she used to on occasions of this same nature, though she was a little shy. Her face was as beautiful as a newborn rose, and her hair was done up like a schoolgirl's is done when she expects to have company; her skirt was not of the tattered and worn variety that she wore when old Brindle made her first escape, and her slippers were tan—those Jack had brought as a present. They fitted her trim foot nicely. Her ankles were covered with lisle thread hose, not homespun cotton, like she wore when Wade first saw her. He now stepped to her side, and together they rounded up old Brindle, and soon had her headed homeward.

When Wade looked into Nora's smiling face he knew that he was an ardent lover, and he fully concluded he would never do one thing to offend her.

She looked into his face, her own beaming with joy.

"I'm never in a hurry to leave you, Jack."

"Thank you. Will it always be just so, Nora?"

"Always—that is, so long as both of us are alive, but——"

"But what? Don't hesitate, speak out."

"But times are fearful now. Tom will be out in another day or two, and then ——"

"And then?" repeated Wade, although he felt it was not necessary for her to finish the sentence.

"And then," she continued, "something terrible may happen. Tom fumes all the time, cursing the luck that threw him so long idle, when he could have been doing so much. And then," she said again, looking tenderly at him, "your life is in imminent danger. You should keep a close watch at all times on Al Thompson. He hates you, and is only waiting for an opportunity to kill you. Will you keep a close watch, Jack?"

"I shall keep a close watch. Not that I have any fears of death, or that Thompson will kill me, but for your sake."

"For my sake, Jack? For my sake only?"

"For your sake only. Let me tell you, little girl, I have but one hope this side of heaven, but one longing. The hope is for you, the longing is for your happiness. Don't you know that you have transformed my life? Once I was a raging lion, to-day I am meek and lowly. The only ray of hope within me was transplanted by your own life. I have studied you from the beginning of your growth until you began to bud, and on until you were a full-grown flower; how, then, can I help but be interested in you? You have torn from my heart most evil designs."

"Were there ever such designs there, Jack?"

"Once, yes. None now. I have much to tell you at some more opportune time; not now."

"If I may venture to say it, I am very glad to have been an assistance to you, because you have been as a shining light to my dark pathway from the first time we met. Dear old Brindle," she said.

"Dear old Brindle," repeated Wade softly. "And now we have old Brindle home again, and we must part, though not forever, I hope. Tomorrow, if all goes well through the night, I should like to take you over to the brook fishing. Will you go?"

"We might be endangering our lives to go over there just at this time. That is Thompson's territory, don't you know?"

"Yes, I know; but what's the use to go through life full of fears for what we might meet? The obstacles which we naturally encounter are so nearly insurmountable as to discourage us, so therefore let us not look forward to those which *might* confront us."

"I shall admit that the natural ones are many, but caution is what has been taught me. We should be grateful to God that they are not more numerous."

"Will you accompany me, then?"

"I shall, if all goes well to-night."

CHAPTER XI

There is a certain charm about the hills that will in time take away from one that feeling of loneliness which always exists in the heart of one who has not been long about them. This charm turns the rugged hills into things of rare beauty, the misty valley into a dream, and peace and contentment finally take hold upon a life that before had been nothing but sorrow and grief.

Jack Wade was no longer lonesome in his lonely little cabin in the foothills, he no longer felt the pangs of that sadness which had hitherto shot over him to cause him to feel like giving up his plans and returning to civilization. There were many reasons for this peace and contentment. The greatest of them was that old Peter Judson and his entire family had done so much to aid and assist him and to drive away all loneliness, and for this cause they had endeared themselves to him. It was now a pleasure to Wade to rise very early in the morning and glance out through the breaking day toward the Cumberland, and watch the mountain grow through the dewy mist until she was plain to view. It was even a pleasure to him to watch her disappear with the departing day.

So when he bade Nora good-night he went down to his own cabin with a light heart, still followed by the good brown dog, Rover, which had taken up with him so firmly that he went home only when Nora blew the horn. He always obeyed this call, and trotted off gayly, but when the morning light appeared he was back again lying on Wade's little porch as comfortably as he desired to be. Wade was very glad of the dog's friendship, for he helped to dissolve the terrible gloom that sometimes gathered over him. He took great delight in talking to the dog while he was preparing his meals, and never forgot to put in an extra allowance for Rover.

"Now, Rover," he said, "you like your eggs better raw, perhaps, and no doubt, if you have been getting them at all, you have had to take them that way; but this is quite a different hotel, and you shall have to cultivate a taste

for fried eggs, as that is the way I like them best, and that is certainly the easiest and quickest way to get them prepared."

Rover whined and wagged his shaggy tail.

"In this country, Rover, old boy," continued Wade, "where every fellow is looking about for someone he can kill, a fellow, if he would eat at all, must get his lunch the quickest way he can; so you must not be angry if you must eat fried eggs."

Rover gave a low bark, seeming to understand fully. He watched the preparation of the meal with pleasure. When Jack moved to another part of the room Rover trotted quickly over there, as though he feared some portion of the work would be lost to him. When Wade stood over the little stove Rover was there looking longingly up at him.

"Now," said Wade, "you don't like coffee, Rover, and there is where you are lucky. You are wise not to drink it. I ought not to drink coffee, but how could I stand the strain of all that I look for should I not take some stimulant? I don't drink whisky, Rover—that is wrong for a fellow to do; I don't chew tobacco nor smoke a pipe, so what? I must drink coffee. Some men say that man is so constituted that his system calls for a stimulant; but I don't believe that, Rover, do you? Now here you are, old friend, a nice slice of good bread made by your dear mistress, a piece of bacon, and a whole egg fried. My, what a lunch for an old dog which has not been used to anything but kicks and curses all his life!"

Rover barked gleefully while Jack put a tin platter on the floor and placed the food into it, and they ate in silence.

After the meal was over Jack went out to sit awhile on his little porch, while Rover dropped down at his feet. They had not been comfortably seated very long when Rover rose to a sitting position and looked in the direction of his home. Wade knew from his anxious look that he had heard something. In another second the long, loud blast from Nora's horn came trembling through the night air and reached their ears.

"What's that for, old dog?" Jack spoke to Rover. Then the sound came again, and Rover bolted off without further ceremony.

Wade arose and stood for a moment listening. It was peculiar that the dog should be called at night unless he was badly needed. As he listened, Wade heard two distinct rifle shots coming from the direction of Peter Judson's home. "Something up," he said, gathering his own rifle and starting out, meaning to go up and learn what the trouble could be. Instead of taking the road, Wade went out through his own pasture and through Judson's field. The old man had taught him caution, and he knew how to use it. He went on as hurriedly as possible until he reached Judson's horse-lot, then he began to peer about. He could see Peter moving about in front of the light at the house, but nothing strange appeared to be taking place. Then he saw old Peter come to the door and look eagerly toward the road.

"What's the trouble?" asked Wade, from behind.

"I thought that'd bring ye, Jack," said Peter, turning quickly, "and ye fooled me, too. Ye air gittin' 'long all right, now, boy. Well, they's a-goin' ter be so much fun ter-night that hit jest looked like I couldn't help axin' ye fer ther fust time ter jine us. Ye see, Tom a-bein' a little sore, hit'll make ther road seem a little lonely to me, an' ef ye want ter see ther fun ye kin take Tom's big black an' come 'long with me. Have yer got yer little shootin' irons 'long?"

"Nothing save my rifle," said Jack wonderingly.

"Well, ye kin use Tom's, an' they air as good as ye kin find in this kintry. Ye hain't a-feered, air ye?"

"I fear nothing," said Wade; "but I'd like to know what's up. I don't want to run into anything that won't be good for me."

"Go with him, Jack," said Nora. "You'll see the fun, sure."

"Yes," said Peter. "Ther hosses air ready, an' I'll tell ye all 'bout it while we go 'long. We have ter travel nearly to the Tennessee line afore midnight, so les' hurry."

Wade buckled the pistols on, mounted the prancing horse, and started out somewhat dubious as to the fate of himself. He had learned to trust old Peter fully, however, and there could possibly be nothing to fear from him.

Beside, Nora had told him to go along, and there could absolutely be nothing harmful to him in going.

"Ye see, Jack," explained Peter as they rode rapidly toward the big mountain, "I told ye t'other day 'bout them durn scamps what'd jine ther association an' then do all they could ter throw it down. Them's ther biggest scoundrels what we have ter deal against. They're the snakes in the grass, an' we don't ever know jest whar they air at. We cain't put our fingers on 'em when we want 'em, but ever now an' agin' somebody runs agin' 'em, an' that's what's up ter-night. We air a-goin' ter flog one o' them fellers now. Ye see that dark-lookin' spot up ther road? Well, them is 'bout fifteen horsemen. Now git that cap out'n Tom's saddle-bags an' draw hit down over yer head,—hit'll fit yer,—an' don't say 'nuther word from now till I ax yer to. When we git yonder that black bunch'll move out an' nobody'll say anything. Jest keep a-goin', an' ef ye git lost from me, say nothin', but keep a-goin', and I'll find ye. I won't have ter show ye any more after ter-night, I 'low. Now keep quiet."

Old Peter almost whispered the last sentence. Jack Wade understood and kept quiet, as he had been instructed. When they rode into the black mass one wild yell from those strong-lunged farmers rent the air, and everybody for miles around knew that some farmer somewhere was nearing the danger line. The swift ride through the cool night air was exhilarating, and the excitement, being entirely new to Wade, was just to his liking. He had been unconsciously drawn into a midnight raid with those hated Nightriders. When it dawned upon his mind that he was actually taking part in a great midnight raid, and would soon witness cruel treatment from the hands of those he was aiding and abetting, a cold chill ran over his frame. Still, the punishment was going to be meted out to one who, in an extreme moment, was about to do a thing which would affect every man, woman, and child in the whole country. He would sell his tobacco for a price which would not permit a living, and he must stop or suffer the consequence.

They rode until it seemed to Wade that the foaming horses must drop from sheer exhaustion. That was impossible. They were used to such trips, and could no doubt keep up the pace for many hours. Supreme quiet reigned. There was no sound save that made by the clatter of many horses' feet striking the soft dirt. When they passed some quiet farmhouse, where all

was silent within, a dog would bay loudly or set up a terrifying howl, which could be heard until they were far beyond.

The moments soon turned into hours. Finally they drew rein in front of a large farmhouse. Jack thought, as he looked at it through those peep-holes in his cap, that he had not seen such a large and handsome place since he arrived in the country. Barns and out-houses were plentiful, trees and shrubbery were plentiful. This was the home of a more wealthy farmer. They were now awaiting a signal from the leader, when every pistol should be fired into the air to intimidate the sleeping victim within.

Someone spoke. "When I fire," he said, "then you can all fire; but no man must fire mor'n once."

The dog in the back yard had now made the discovery that someone was about to intrude upon his master's domain and, faithful dog that he was, he dashed out to face the enemy alone. When he reached the front, yelping and baying, the signal gun was fired. The bullet struck the dog squarely in the forehead, and with a short yelp he fell dead. Almost simultaneously other pistols were fired, yet not so simultaneously as not to be discerned separately. The Riders, who knew their business so well, quickly separated and surrounded the house. From within came the victim, who, when he heard the shooting, suspected immediately that danger lurked near, and darted out of the house intending to make his escape by the back way.

He was caught by the strong hands of two farmers, who lead him out to where their horses stood, followed by others. No one spoke a word. The spectacle was new to Wade, who followed on in silence. The victim was lead out to a strip of woodland, where he was stripped of every stitch of clothing, bent over a fallen tree trunk and—it is too horrible a tale to tell. The vividness of it will stand forever in the minds of the few. No, he was not murdered, but worse. The great leather straps with holes in them were far worse than bullets from a forty-four gun. Mr. Openraiser begged for mercy like a child. He promised that his tobacco would not be sold, and he would be a good obedient member in the future. It was afterward learned that he kept his promise.

CHAPTER XII

Some one laid his hand gently on Wade's shoulder. "Come on quick, now," he whispered softly, "don't make any noise."

It was Judson. Wade followed on silently. No sound broke the stillness of the early morning, save the clatter of the horses' feet. Far to the left of them the clatter was dying out; to the right of them the noise was growing fainter; no sound came from old Peter Judson. The only immediate sound was that made by their rifles as they clanked against the brass parts of their saddles. The twinkling stars shone on, undisturbed by anything that had happened. Those two Nightriders, Judson and Wade, rode on for several miles without the exchange of words. Finally Peter, concluding that there was no danger, jerked the cap from his head and stuffed it into his saddle pocket.

"Take off yer head-gear," he said to Wade, who complied gladly.

"It's pretty warm under this thing," said Jack.

"Not so warm as hit was under them straps, is it?"

Wade made no reply.

"Ye don't like that much," said Peter, smiling, "Well, ye air not ter blame, but ye'll see ther point afore ye air many days older. Now, I want to tell ye somethin'. They was four o' them Thompsons' thar, an' we've gotter look out, 'cause they're shore to head us off. We air not travelin' ther same road as we come down when we went to ther spankin'. Think yer kin take on a little shootin' fun ter-night, Wade?"

While Peter spoke he was glancing sharply about them. He was accustomed to the ways of those old mountaineers, and felt quite certain that trouble was lurking near. His experience in feuds had taught him about what to expect, and he would not likely be caught unawares.

"Ef ye kin," he continued, "unhook yer gun, fer they's a-goin' ter be somethin' doin' soon."

The words had hardly passed from his lips when there sang over their heads the "zing" of a rifle bullet.

"Thar ye air," shouted Peter. "We mout a-looked for that shore. Git ready, now, an' when ye see a black spot down ther road let 'em have it good an' straight."

"*Bling!*" Another bullet passed harmlessly near. "*Bling!*" one was sent back.

"Move up a little, Jack," said Peter, tapping his horse. "I'm not a-feered,—don't want ye ter think that,—but they be too many fer us to stop an' argify with."—"Bling!" "*Blang!*"—"Give 'em thunder, boy. Thar they air!"—"Bling!"—"Git to t'other side o' ther road, Jack"—"*Blang!*"—"we air too close together, so's they cain't hit us so easy."—"Bling!" "*Blang!*"—"Keep it a-goin', boy, ye'll git used ter ther ways o' the mountain yet"—"*Blang!*"—"Ther durn fool!" ejaculated Peter, grunting loudly.

"What's the matter?" asked Wade.

"The tip end o' one o' my fingers is gone clear as a whistle, that's what ther matter is, boy. Give it to 'em, now,—thar they air, but they hain't a-coming so fast. Think we must hit somebody that time. What air they now? I don't see 'em anymore."

"Neither do I. They have given up, Peter, as sure as you live; they've quit the fight. Somebody got a bullet."

"Don't be too shore, boy; they must be foolin' us and' goin' 'round to head us off. I've been through mor'n a dozen sich fights as this,—got two bullet holes in one leg at ther same scrap,—but they hain't got old Peter yet. I guess it's all over for this time, Wade. Follow me now, quick. I'm goin' ter give 'em the slip. We'll go clean 'round that hill yonder, an' they won't know whatever become of us, ef they do try to out-trick us."

After skirting the hill in silence, old Peter began again: "That was one good short fight, boy, an' I declare ye air a putty good stayer. Ye kin pull ther trigger 'bout as fast as any Kentuckian as ever fit with me, lessen hit was Rube Willers. I remember one time years ago when I was on t'other side o' ther mountain, when Bill Tulliver's outfit was agin me an' Rube Willers. 'Course we had friends, an' so did they, but Rube could outshoot any feller

what ever come into the mountains, an' I seed him put 'bout five holes through Bill Tulliver afore he hit ther ground. But Bill come near a-gittin' him, shore; he put a hole in Rube's shoulder, an' ef hit'd 'a' been one inch t'other way Rube'd never 'a' had time ter git anybody after that, he'd never 'a' had time to a-told what struck him. These old mountaineers know how to use ther shootin'-irons, that's shore. But I forgot to ax ye ef ye got hit, did ye?"

"No, I'm safe this time."

"Ye talk like ye mout git a ball some other time, an' ye had better look sharp all the time now. Al Thompson is a lion, but we made him git ter-night, I believe. Don't ye think we've slipped them?"

Jack did.

The gray streaks of dawn were appearing in the eastern horizon and there would likely be no more fighting. Judson and Wade were not far from home now. Being tired and sore, they rode on in silence. Jack Wade was no coward, a coward would never have undertaken the heavy task which he had, but he also was not fond of fighting. Had he lived in the mountains all his life he would have enjoyed the sport, but he had not, there was not so much sport in it for him as there was for old Peter Judson, who knew nothing else.

The trouble between the Judson and Thompson factions could be dated back to the early days, when one Alex Judson, a very young man, shot to death one Bill Allen, a kinsman of the Thompsons, on the streets of the little village. Alex Judson flew to the mountains, and there arose two factions out of the killing. From time to time a Thompson or a Judson was picked off his saddle as he rode over the mountain in the dead of night, but after the death of Alex Judson the trouble had been patched up, and for years had lain still, but only sleeping, not dead. The history began before the present generation came into being, and old Peter's act in clipping Al Thompson's trigger finger off had opened the wound anew, the old sore bled, and the end of the trouble was not yet.

All this and more Peter told Wade as they rode on toward home, finally pulling up at Wade's cabin.

"An' now, Wade," said Peter, "ye air a Judson, an' ye can't expect anything but death. Somebody's a-goin' ter git killed afore this thing is over. Hit may be me, hit may be you, hit may be Jim Thompson or his son Al, an' hit may be Tom. Nobody knows who it will be till he's done fer."

"I shall be satisfied," replied Wade.

Jack watched the old man out of sorrowful eyes as he rode up the hill leading Tom's horse behind him.

"The old fellow has had much trouble," he thought, "but he seems to enjoy the sport of a feudal fight." Wade attended to his own stock and then lay down for a few hours of rest. The strenuous night had been too much for his nerves, but there was much other trouble before him of which he little dreamed as he lay across his bed to rest. He was not long in falling fast asleep, and it was near noon by the sun when he was awakened by the low whine of Rover standing at the door. Wade rose and shook himself much after the fashion of a dog coming out of the water. His head felt heavy, his brain dull. The events of the night before were trying to fix themselves in his memory, but he could not shape them. He had faint recollection of all he had gone through from the time of hearing the dog-horn, the two successive rifle shots, his hasty rush through the fields to Judson's, and then, ah, then, of his acceptance of the invitation to go out into the darkness of the night to watch the fun of flogging a farmer. It all passed hazily through his sleep-clogged brain. He could now see it all just as it happened, the firing of rifles, his own hasty retreat, the running conversation of old Peter Judson, as he encouraged him to keep up a continuous fire on the dark spots in the road behind them; then Peter's exclamation that the end of his finger had been shot away by the murderous marksmen, the escape, and finally the return to his own cabin.

He could not keep these events out of his memory, they were there as dark spots and would remain so forever. Reaching for his coat, he made the discovery that he had narrowly escaped death, for there, a half-inch from the second button from the top, was the tell-tale hole made by a Winchester bullet. He could remember now just when the bullet which had nearly taken his life flew by him. He had heard the "zing!" and the "swish!" but had not suspected that it came so close to boring a hole through his heart. A cold

shudder ran over him as he thought of the close proximity to death. Ah, well, that was life in the mountains, that was the fulfillment of the "call of the wilds," and he must not now complain. Wade seemed stupefied. All the while he dreamed the good old brown dog looked longingly up into his careworn face, as if to say, "What's the matter, master?" But there was no reply.

Rover whisked about him from one side to the other, in a vain effort to attract him, but the result was the same, the mystic stupefaction was on him, and he cared not for the dog just then. Of a sudden Rover ran out of the door, baying furiously. Wade looked out and discovered the reason for Rover's action. From toward the city came three men on horseback, riding leisurely. Wade watched them closely as they came on. They were strangers so far as he could tell from the distance that separated them. When they were just opposite the cabin they halted, Wade still watching them. Their actions now seemed a little strange, for one rode around the other two and stood near the gate. Rover was tearing up the earth in his anxiety to get at them. The man near the gate cried out loudly, and Wade, unconscious of lurking danger, went out in answer to the call, unarmed. He had not seen the necessity of arming himself to meet three strangers in bright noonday. The other two lined up near the fence, and when Wade approached, commanding Rover to be quiet, the three men covered him with revolvers. "Hands straight up," said one.

Wade obeyed the command. "What outrage is this?" he asked warmly.

"No outrage at all, friend," said the captain. "It means that we have come to arrest you, and if you make any fuss about it you might be seriously hurt."

"I don't understand," said Wade.

"You will soon enough. You are under arrest in connection with the death of one Lem Franklin, who passed in his checks last night with his boots on."

"What proof have you that I know anything of the death of this Franklin?" asked Wade.

"Sufficient to convict you of murder, sir," was the reply.

"I don't know this Franklin at all."

"Likely enough you don't, but the proof of your guilt is sufficient to warrant the arrest."

It was beginning to dawn upon Wade's bewildered mind that he and Judson had dropped one of the enemy during the running fight of the night before. He could see it plainly now, but he knew it would not do to submit willingly and meekly to an arrest which would deprive him of his liberty for a long time.

"I am not armed at all, as you can see," he said, "and I believe it will look better if you gentlemen will lower your revolvers. I will feel more free then to talk with you. You have a serious advantage."

"And we intend to hold it, too," said the captain. "A fellow must get an advantage and keep it in this country. Make ready now, and come on."

Wade looked fire. "I shall not submit," he said hotly.

"Then if you will not, we must force you, and I warn you that one move contrary on your part will cause your immediate death."

"You are a bluffer," said Wade, "and a coward." Jack had now recognized this man.

The latter raised his revolver until it pointed directly at Wade's head. "You think it a bluff, do you, and that I won't shoot?"

"You won't do any thing fair, that's certain," exclaimed Wade.

The assistant officers kept very quiet, not offering any way out of the difficulty. The captain got off his horse and stepped toward Wade. "I'll blow your brains out," he said, angrily, "if you don't come out at once."

"You did blow one man's life out recently," said Wade sneeringly, "and I do not doubt but that you would blow my life out, if you were in the dark where two other gentlemen could not look upon the deed."

The peculiar manner in which Wade remarked this caused the two to look one at the other, and the captain turned pale, staggered toward his horse, and replied more cautiously: "I don't understand you, but there is no use to

argue the case. You must submit to an arrest, and that as quickly as possible."

Wade knew that his remarks had made a telling blow, and that he now had an equal advantage.

"I will not submit," he replied coolly, "and if you do not leave without further request I shall have this entire country on to you in less time than an hour—even before you could get three miles down the road." Turning to Rover, Wade said, "Go home, quick, and give the alarm." The good old, well-trained dog, seeming to understand, galloped off in the direction indicated by Wade's pointing finger, while the officers looked after him anxiously. The mark had been struck, however, and the officers, thinking it a good time to depart, said, "We'll get you a little later, old boy." With this they galloped off toward Guthrie.

The man whom Wade had defied was no other than the assistant officer who accompanied the warehouse man out that fateful night when Fred Conover was so wantonly murdered. Wade had recognized him, and used the knowledge to his own good, and to save himself from the jail at that time.

Thoughtfully Wade made his way slowly up the road toward Judson's home, where he told of what had just happened.

"That," said Peter, "is the work of Al Thompson, shore. He's to the back of it. Seein' as how he couldn't fetch us fair and square with a bullet, he's made up his mind ter git us any way he kin. Apt's not, ef ther truth was known, he shot Franklin in ther back hissself, so's ter say we done it. Hit looks kinder like he was after you specially, Wade, cause he hain't got no right ter know that ye were out last night unless he seed ye or heerd ye a-talkin', or seed Tom's hoss, one t'other. Ef he didn't, he's a-playin' a sneakin' game, that's what. Well, I see I cain't git 'bout, fer awhile, on account o' this hyar finger bein' a little sore, an' Tom, he's walkin' 'bout a little now, an' you an' him'll hafter kinder keep things a-goin'—keep 'em warm till I git so I kin shoot agin. Ye needn't be afeerd o' them officers a-comin' back agin. They won't do that. Only 'cause ye air putty nigh a stranger hyar that they ever tackled ye 'tall. Thay won't tackle a feller what knows, that's shore. They're skeered o' their shadders, that's what they air."

Old Peter quit talking long enough to put out a plug of tobacco as large as his fist to be replaced with another equally as large, and continued:

"Now, Wade, ye've got ther best of one man anyway, an' I reckon ye better keep ther knife thar a little while. Hit'll do us all good some time, an I reckon ye better not go a-fishin' ter-day, 'cause Al Thompson'll turn ther mountain over ter do us up. I seed Frank Buckalew ter-day, an' told him how things was a-goin', an' he said he'd fix things warm over t'other side, an' he'll do it, too. He's my cousin, an' as good a fighter as ever carried a gun over ther mountain, I seed him kill a feller onct after the other feller had him kivered. Hit was done so quick he never know'd what struck him."

CHAPTER XIII

Late August and seasoning. Many of the farmers who had raised tobacco at all had it stored in their barns, some intending to sell openly, and others to throw into the pool. The great association knew what was going on from the top of the mountain to the cities below. "The Wolf, Night-Watch," had been very busy from the beginning of the burning season through the turning, resetting, and gathering. He knew just how much tobacco each farmer had raised, where it was stored, when and to whom he expected to sell it, and what he expected to realize on the sale. He knew how much tobacco Jack Wade had stored in his barns down on the Redmond farm, and he also knew that Wade was in thorough sympathy with the association, which was making strenuous efforts to raise the price of tobacco to a point where living expenses could be met.

Every farmer knew Wade now, and looked upon him as a strong friend and a powerful help in the community. His popularity had grown to such an extent that he was recognized as a leader, and his counsel was eagerly and continuously sought. He had made such a thorough study of the situation that he was familiar with all points. His great genius was highly esteemed, his knowledge of tobacco and the manner of raising it brought many of the older raisers to converse with him, and he freely talked with everyone, giving his idea in full. The result of his study was that more tobacco and a much higher grade was being raised on less ground than the old heads thought it possible to raise at all.

When the purchasers from Hopkinsville came, Wade searched them thoroughly with his keen eye. He knew they had intended to put the price down low, and he was going to meet them in a manner that they little dreamed of.

"Yours is the finest tobacco I have seen," said one.

"Thank you," replied Wade carelessly. "Have you purchased much yet?"

"Only one barn. I'll offer you three and one-half cents at once for yours."

Wade just stared at the speaker.

"I'll make it four cents," said the other.

Wade turned upon him sharply.

"Do you expect to buy much tobacco at that price?" he asked.

"We expect to purchase every pound of tobacco in this country at less than five cents," said one.

In Wade's mind there was a set determination, born on the moment, that they should not purchase one pound of tobacco for less than ten cents, and perhaps more.

"You are buying for the trusts?" he asked.

"No," said the other, half angrily, "we are *not* buying for the trusts. I am buying for a private company, and have no connection with this gentleman, although we are together. If his judgment leads him to believe that the tobacco is worth more than my judgment leads me to believe it to be worth, naturally he offers a better price, that's all. Now, as I said, you have about the highest quality tobacco I have seen this season, therefore I shall raise this gentleman's offer and make it four cents and the half. Shall you let it go at that?"

"I shall not."

"Then you may keep it stored until it rots."

"Hold!" said the second man. "My last offer is six cents. Shall you let it go?"

"I shall *not*!"

"Then keep it in your barns until it rots; you'll not get more than we have offered you."

"I'll allow it to rot then," said Wade defiantly.

The two men rode off toward Judson's. Wade meant to fulfill his determination, if it should cost him many thousands of dollars. Hastily

saddling his horse he also rode up to Judson's, where he found the two tobacco purchasers parleying with old Peter.

"No," Peter was saying, "I hain't got much terbacker this season, but ye cain't git what little I've got fer no three and a half cents."

Jack touched the old man on the shoulder. "Remember, Judson," he whispered, "I'll make it one cent heavier than they offer." Then he rode in search of Tom, whom he instructed to go over the country as fast as he could and advise the faithful ones to hold their tobacco for twelve cents. "Tell them," he said, "that they have a standing offer of eleven and one-half from me, and they should hold out for twelve from anyone else. Make it plain to them that the offer is made in good faith, and the man who fails to sell in good season for twelve cents shall receive eleven and one-half. You had not better go into Thompson's territory."

"I'll go thar too," said Tom, "an' I'll even go to old Jim Thompson's house. He can't hurt anybody yet, an' Al's off on a trip right now, so they's nuthin' to be skeered of."

"I won't make the offer to Thompson at this time, Tom; it would be no use. He'd rather sell for one cent than accept assistance from us."

"All right, I hain't a-keerin' much 'bout foolin' 'round thar, anyhow."

"Be off, then!"

The two men were still parleying with Peter, in an effort to purchase his tobacco, but he was holding very high above them.

"No," he said, "I'll not take seven nor eight."

"My last offer is nine," said one.

"But I'm offered ten."

"I'll take what you have for ten," said the second.

"I'm offered eleven," said Peter, smiling.

The two purchasers turned in disgust and went their way, considerably discouraged at the outcome of their trip. It was the same everywhere. "I'm

offered one cent more," was all they could hear. They were unable to make out as to who had got in ahead of them to offer more, and they could not reconcile this condition with Wade's whispered conversation with Peter Judson. Every place they visited they received the same reply, so they turned back to Hopkinsville with dejected countenances. When they had departed from Judson's, the old man turned to Wade and said, "Boy, what do you mean, anyway? Do ye expect ter fight ther great trusts?" Peter smiled.

"For this season I do. There is only one way to win a battle, and that way is to fight. Can't you see the result already? We shall get twelve cents for our tobacco, where you have been getting only six. If it works out all right, I'll offer more next season, and Nightriding will be forever done away with and peace will reign among the farmers of this rich country. Do you see it all?"

Peter did see it, and was very enthusiastic.

"Ye air a brick, Jack," he said. "I always knowed that ye had a great head an' was sent into this kintry to save ther poor devils who couldn't save themselves, 'cause hit'll work, an' they'll be back fer the terbacker at twelve cents afore long, shore. They got ter git this terbacker or go busted an' quit. Tom'll not quit ridin' till he's told every farmer plum to t'other side o' ther hill an' back. Whoop, let 'er go, we'll down 'em yet!"

Old Peter threw his hat high into the air and jumped like a boy, so enthusiastic did he become.

"Ye'll make yerself more popular than ye air already, Jack, ef ye don't watch out a little."

Wade knew his own power better than any other person. He merely smiled at the old man's great enthusiasm, then turned to Nora, who had stood listening to everything, feeling a higher admiration for Jack Wade.

"We'll take that trip to the brook to-day, if you like," he said. "The day is so calm and the air so invigorating, it will do us good."

"I shall be pleased," she said. "Shall we go at once?"

"If it won't interfere with your duties at home."

"Nuthin' ter hinder," said Mrs. Judson; "she kin go when she wants."

The little wild flowers that earlier in the year were so bright and happy were now a little drooped, having gone through the warm summer with but little water; however, they still nodded approvingly as the two passed astride the gentle steeds.

"When we were here last," said Wade, "the spring was just appearing and everything was so beautifully green."

"The summer sun has been too much for the foliage and flowers," replied Nora.

"That is only to remind us of what humanity must pass through," said Jack. "The bloom of youth is upon us, we are now in the springtime of our lives, fresh and gay; but the great hot summer of time must pass over our heads to wither us as the summer sun has withered and drooped the sweet little flowers. The cold winters of time must pass over us to silver the golden curls and gray the hair as the summer sun has given a golden tint to those once green leaves yonder."

"Oh, Jack, must it be so?"

"Do not look so sorrowful over it, child. Life is life, and must be lived out in accordance with the will of the Almighty, maker of heaven and earth. See how beautiful the golden-tinted leaves appear in the last hours of their lives. They have done their duty, and the reward is theirs; they toil no more, but man, who is born of woman, is of few days and full of sorrow."

"While it seems that all is night to the poor woman whom God has seen fit to place here as a helpmeet to man."

"You are looking through the darkness to-day, Nora."

"There seems no light, Jack."

"Yet it will break in on you, my child, when you are least expecting it."

"Then there will be other things to worry over."

"My little fairy," said Wade, "you were not born to worry. Cease. It makes you thin; you must not worry any more."

"How can I help it, Jack? I must worry while conditions are as they now are in the valley. I fear lest Dad shall be killed, I fear lest Tom shall be picked from his saddle, and I—I even fear lest you might not be with us long. You must know that you have been a great salvation to this country, in one sense, and in another——"

"What! you hesitate?"

"If you should die," said Nora slowly, "why, life would not be worth much to some."

"And to you, Nora?"

"Without you all would be dark."

"Nora!"

"Yes, Jack. You are the only person who ever awakened within my soul a sensation akin to joy. Your big heart has won my esteem, and—and——"

Nora hung her head shyly, as she told what had been in her heart for some time.

"Your love is not in vain," said Wade.

They had now reached the brook, and were dismounting.

"Let us seal our love right here, under this tree," said Wade, and he impressed a kiss upon her sweet forehead. A quiet flush covered her face, and she was very happy.

The spot they selected was a lovely one 'neath a small bush, where they would be completely hid from the view of an idle passer. They were in Thompson's territory, and, though Tom Judson had thought Al was away, it was not true. This had been a ruse on the part of the wily Al in order to catch a Judson napping. Wade did not know of a certainty that Al was not gone, but he was cautious, nevertheless. His rifle was ever near him. Now, they had not been long secure until they saw Al meandering down the stream on the opposite side from them. Wade watched him until he was directly opposite them, then whispered to Nora to keep well hid. Leveling his rifle at Al, he commanded him to halt. Nora's heart beat fast in her

bosom. Al, recognizing Wade's voice, looked sharply around, sending his right hand to his pistol pocket. Too late.

"Take it off," said Wade, "or I may be tempted to blow out your life."

Wade spoke in the rough language of the mountaineer. Times were such that a fellow must necessarily blow a fellow's brains out or get his own scattered over the earth. Thompson caught sight of Wade in his hiding-place and, seeing that he was looking into the barrel of Wade's rifle, took his hand from his pocket and raised it, with the other, high above his head.

"Ye've got me shore, this time," said Al. "What ye goin' ter do with me?"

"I'm going to kill you," replied Wade. "Turn your back to me, and be quick about it."

"What! ye hain't a goin' ter shoot me in ther back, air ye?" asked Thompson, turning to fulfill the command.

"Wouldn't you shoot me in the back, or any other part of the body, had you the opportunity?"

"I didn't."

"You haven't had the opportunity."

"Yes, I have."

"When?"

"Ther night I borried yer hoss. Ye didn't know me then, Wade, but hit was me, shore. I lost my hoss an' just had ter have 'nuther—had so much ter do afore morning', an' I took yours for only a little while, 'cause I knowed you wouldn't have as much ter do as me."

"Why did you not kill me, Thompson, while you had the chance?"

"Because ye didn't kill me when ye had the chance, that's why."

Wade crossed the stream, going directly through the water, took Al's pistols from his pockets and laid them on the ground a safe distance away. Stepping back a pace, he commanded Thompson to turn and face him.

"So you did not kill me that night because I had not killed you at a time when I had an advantage?"

"Exactly. Do ye think one of us fellers could be unfair? Not so; we treat everybody square. That time made us even, but I said I'd kill ye ef ye was caught that away again."

"In that case, Thompson, I have a perfect right to let you have a load," said Wade, drawing a bead on the latter's head. "First, however, I want to know why you hate me so, why do you wish to kill me at all?"

"That ought'n ter make any difference ter you."

"It does, and your life just now depends upon your answer to the question. I've got you dead to rights, and you may as well know that I do not intend you shall live another moment if your motives against me are not true. Now answer how you will."

"In ther first place," said Thompson coolly, "ye air playin' false with ther gal I love. Ye don't intend ter marry her. Ye've already said in yer own mind that she's not good enough fer you, an' ye air foolin' with her heart an' a-killin' her, an' she's weaned away from me, so it's made me sick, an' I said I'd kill ye fer it. Then ye got ther best of me, an' didn't, an' I got ther best of you, an' I didn't. Now, ye have me, an' I reckon ye oughter do it, though, I——"

"You are lying," interrupted Wade. "You are lying through and through, and you know it. You are a coward, Thompson, through and through, and you feel it, so I'm going to shoot you through the top of your head right now to end your earthly fears and settle the matter once and forever."

There was a terrible gleam in Wade's eyes, Thompson saw it, and his flesh quivered. He saw Wade raise his rifle barrel until it was level with his breast, up it came until it was level with his head. There came over him an impulse to break and run for his life, but his horror of being shot in the back kept him from doing so. The sensation within him at that moment was terrible. Suddenly, being thoroughly overcome with fright, he threw both hands high into the air and cried out for mercy.

"For God's sake," he exclaimed, "don't kill me this way!"

"I knew you were a coward," said Wade. "I didn't ask you for mercy when you would have driven your knife through me, but I am going to hear your cry and let you go. One thing I want to know, however, and I must have the absolute truth. Didn't you come down this way looking for me?"

"Yes."

"And intended killing me?"

"I did."

"What object had you in telling the officers that I killed Franklin?"

"I wanted to fix ye then."

"Did you not shoot Franklin yourself?"

"No, no. I didn't! Hit was a bullet from your gun, or old man Judson's. No, Wade, I did not do that. I hain't that mean, ef they do say I am."

"How did you know I was out with the Riders?"

"I didn't know ye was there. I took a long shot ter fix ye, that's all."

"All right, now, here are your pistols. Take them and get as fast as you can. Don't try to use them now, but when you get the drop on me again you had better pull the trigger."

Wade watched Thompson as he made his departure. When he had put considerable distance between them Al fired both his pistols in the air and gave one of his old-time Comanche yells that vibrated through the woodland.

"I'll git ye yet," he cried back. "Ye hain't, got away from me, an' what's more, ye hain't a-goin' ter."

Wade drifted back across the stream to where he had left Nora, and found her shaking from fright.

"You didn't take these matters so seriously when I first came into this country," said Jack.

"No," replied Nora, "for then I did not think as I do now. I really believed you were about to commit murder. Oh, Jack, how happy you have made me, by withholding your hand."

"Once you said it would be better for me to kill Thompson at sight. Did you not?"

"I did not, Jack. That is what father told you."

"Pardon me, Nora, you are quite right. Time has blurred my memory."

"I am so glad, Jack, that you are such a fearless man. A coward would have taken the advantage you had and would have slain Al."

"Thank you."

CHAPTER XIV

The little cabin at the foot of the mountain was enshrouded in gloom, would soon be engulfed by the dark shadows of night. In the cabin window a candle light, wafted by the soft twilight breeze, flickered and sputtered, but burned on in obedience to the will of the powers that be. In a bed in one corner of the room lay Nora, that sweet girl of the wilds, a pallor spread over her face.

The light in the window was flickering just as her own life had been flickering and smoldering, but it did not go out. She was still alive, and the crucial point had been passed. Now she lay, the Diana of the hills, as beautiful as the Diana of old. Outside 'neath the large spreading tree the chickens were strutting, craning their necks, bobbing their heads up and down, looking upward preparatory to a flight to the limbs above them. On the rickety little porch old Rover was lying, head cast down between his front forepaws, with a sorrowful expression upon his dog face. The mistress had been ill for some time, and his master—Wade—had not paid the least attention to him, always appearing as though he preferred being alone; so the old dog, feeling the many slights, went about with a cast-down countenance.

Earlier in the day Wade had passed going toward the mountain in search of game. Later on he was blazing his way, with the barrel of his rifle, through the thick underbrush down the mountain side. He had got into entire new territory, and sometimes it became necessary for him to crawl through, so thick was the brush. Other times he merely pushed aside the low-hanging limbs with his gun, finally emerging from the thicket into the open space. When space would allow he straightened himself out, then his back ached and his hands and knees were very sore. Suddenly he caught the sound of a disturbed rabbit as it flitted out from its snug nest beneath the shrub. Jack looked quickly in that direction, in time to see it crossing the ravine too far away to shoot. As he walked on there came to his listening ears the shrill whistle of a mountain quail as it sang out its note of warning to its hidden mate near. Wade started off in the direction whence the call of the quail

came, but after walking some distance gave up the search and stood still. A dead silence prevailed. Before him was the clear running stream, behind him a wild waste of mountain. Down to the stream's edge he walked, and sat down to rest his tired, weary, sore limbs. The sun was now setting behind the western hills, the soft gentle twilight was drooping over the mountain and valley; still Wade sat, dangling his feet over a precipice, gazing down through the gathering mist into the gleaming waters below, watching them as they went dancing gleefully over the rocks, sending their sparkling, silvery spray high into the air, falling again like silver bubbles. When the dark shadows swooped down and the day was no more, he still sat. When the golden moon rose above the towering mountain, dispelling the hideousness of a lonesome, dark night, he was still sitting in the same spot, dangling his heels against the solid embankment. Across his limbs lay his rifle, his right hand protecting it, while his chin rested firmly in his left hand, which was supported at the elbow by his left leg. Thus he sat silent, no sound save that of the rippling waters of the little running brook breaking the stillness of the night.

"Ah me, ah me!" sighed Wade. His head was bent and his heart was stooped; it must be all over. "For so long a time have I been about this mountain, and the object of my coming, though faithfully sought, has not been found; my purpose remains yet unfulfilled. The tortures I would have inflicted upon others have been turned upon my own heart. My soul is sad. I give up, I give up, for all time. There are now no murderous intents in my heart, there are now no evil designs in my life. Would that I was at peace with everybody. All my heart's desire is peace, sweet peace, that I might spend the balance of my days amid the sweet perfumed mountain flowers and about this dear little stream with whose swiftly running waters I have raced so often, always with her, the sweetest and most beautiful of all. Dear wild flower of the mountain!"

Wade raised his head until he looked into the beautiful blue of the heavens. The gleaming stars, arrayed in silvery brightness, looked down on him.

"Speak, lights of God, speak to my waiting heart, speak to my burdened soul and tell me, if you can, what the future holds in store for me. Am I to continue in hell on earth for my evil life? If so, tell me quick that I might dash my head against yonder rock and end the torture now. If not, speak,

that she might live. God save her, let not her present illness separate us forever. It would blight my life; it would kill me. Save her that she may save my soul from a torturous hell; save her that her sweet life might be a blessing to the great, big world beyond this mountain, which she so much longs to see."

Jack felt much better—as does anyone after a faithful prayer. He felt that his prayer had been answered already, and rose in great haste to make his way back over the mountain to the bedside of Nora. He had not seen her all day, had been afraid to see her lest he should find her cold in death, but rather spent a great portion of the day in prayer for her immediate relief. When he arrived at the cabin of Peter Judson the flickering candle-light was still in the window, burning low. His heart sank; it was emblematic of a low ebbing life. With bowed head and unsteady step he went in. Old Rover, still lying quietly and silently on the porch, did not rise at Wade's approach, but wagged his tail in recognition. A death-like quiet pervaded the place, a solemn stillness overspread the home, but he was encouraged to go on, with a feeling that matters were improved.

Old Peter met him at the door, and to his anxious, questioning stare he said: "She's much better; the danger is over."

"Thank God," came in broken whisper.

Wade sat down by the bedside and took the slender, pale hand in his own strong one. For a moment no sound came from the lips of either of them, they just looked into each other's eyes until the weaker ones became mist-filled, and those strong, manly eyes of Jack Wade battled hard against heavy odds just at that moment, but the tears were held firmly back while he rubbed the hand which he held.

"I'm much better now, Jack." The voice was low and weak, but sweet and serene. "Your presence is like good medicine. Why haven't you been by before?"

Wade would not tell her that the balm came from God; therein he was weak. His excuse was, however, satisfying to the tired and worn mind, and strength to the wasted frame. She looked up into his face sweetly.

"You look so tired and worn, Jack," she said, "have you been worrying a great deal?"

"I have worried much, dear girl, on your account. Now that you are better, I will not look worried any more."

"Have you encountered any trouble lately, has your life been threatened?"

"It has not. All has been peace and quiet without; the turbulence has been within only. I do not have fears for anything as regards the power or will of man. We must not talk of those things just now. When you are stronger I have much to tell you."

"Then I must get stronger fast, for I cannot bear to lie here while you are withholding something from me."

"I fear you won't like me when I have confessed and laid my life bare before you."

"That cannot be, Jack. Nothing at all shall separate us, so far as I am concerned."

Wade raised the thin pale hand to his lips and kissed it, thus bringing a flush to her sweet face.

CHAPTER XV

Nora gradually regained her old strength, and after a few weeks had passed she was going about doing her domestic duties as before. Jack Wade was sorrowful no longer, and Rover was himself once more.

When the good dog saw Wade coming through the gate he began wagging his tail and showing by other signs that he was as happy as the human beings about him. When Wade departed for his own cabin Rover would accompany him, sometimes halfway, sometimes the entire distance, as if he believed harm would come to his friend unless he kept close watch over him. Somehow, Rover had a better instinct in sniffing danger than most dogs, and when there was the least intimation of danger or trouble Rover scented it very early, and generally conveyed the news to those about him in his own good way. He was fully understood, his language was well known to his masters, and they knew by his actions what was about to happen.

Thus it was that, when Wade was doing his evening chores, Rover came galloping into the horse-lot, baying in a troubled fashion. Something was about to happen. Rover never acted in this manner unless it was so. He ran whining to Wade, caught his boot-leg between his teeth and pulled; then letting loose, darted rapidly toward the gate, back again, barking in a manner indicating fear, taking the boot-leg again and pulling vigorously.

"What, old boy," said Wade, "some more trouble in the air? Well, just be patient until I can lock this door and get my good weapons, and we shall see what it's all about."

So speaking to the dog, Wade locked the barn, hurried into the house and, taking his two pistols and rifle, started cautiously up the lane toward Judson's cabin. Night had fallen and the moon was just peeping up over the hills, sending forth a dim dusty light, while the sky was canopied with a very thin white cloud and the stars gave forth no light at all. Wade made his way as noiselessly as possible, followed by Rover. Looking in the direction of Judson's, he saw a streak of light made from the flash of a rifle shot, followed by a faint report, which meant a bullet to where he knew not. He

knew that the long looked for trouble was on in real earnest, therefore hastened his pace. The firing from many rifles became more general. He had got close enough to see that there were more than a half dozen combatants firing on Judson's cabin from toward the hill. Judson and his son Tom were returning the fire at intervals in an effort to repulse the attack, and had been successful in holding off a rush. From his position Wade could have taken off two of the opponents before they discovered him, but the flashing fire of his rifle, however, would have disclosed his hiding place.

He thought for a moment, raised his rifle to his shoulder and took deliberate aim at a foe sitting on the back of his horse. No, that would be murder straight out. God forbid! Still, the impulse to fire clung to him, but he could not seem to pull the trigger. The firing between the combatants now became more furious, and suddenly he heard someone in the house cry out with pain. Again he took aim at the man nearest him, fully intending to put out the light of life. His finger touched the trigger and in another moment one would have been slain, when a hand was laid gently upon his shoulder. It was so sudden, however, in that terrible moment, that fright ran through him and he accidentally pulled the trigger of his rifle, but the ball went high into the air. He was hastily pulled into the cover of the barn.

The effects of his shot worked terror to the hearts of the attacking party, however, who thought they were being surrounded on all sides by unknown foes, therefore took time by the forelock and fled in great confusion toward the hills. But look! one horse bounded off riderless. Could it be possible that one was in hiding near, and intended doing a bit of guerrilla fighting?

Wade stood like one transfixed to the spot, looking after the fleeing horses of the enemy, not once turning to see who touched him, until the last fleeing form had passed from view and the firing had ceased altogether; then he turned and stood face to face with Nora Judson. A flush, unseen through the darkness, covered his hitherto pale face. For one brief moment they stood facing each other.

"How came you here?" he asked.

"Our mutual friend told me that you was about to fall into an error." She looked toward Rover, who stood at one side wagging his tail. "Jack," she

said, tenderly yet sorrowfully, "you were about to commit murder."

"I *might* have killed one of those fellows, but I cannot see that it would have been murder in a real sense; we are enemies, and this has been a small war."

"But you were about to take the life of someone in a manner that I would not call bravery. You were not in front of the battle as an open enemy. The fellow you would have killed knew nothing of your presence here, and that would have been cold-blooded murder."

"What is the difference in this country, where all is murder?"

Wade was evidently trying to relieve his conscience.

"The difference is not with the other fellow, but with you. I am glad, however, that you did not kill him."

"I am also glad of that, Nora, thanks to you." They were now walking toward the cabin. "Was anyone inside hurt?" asked Wade. "I heard someone cry painfully."

"That was Dad's ruse to draw them to a closer range, but it was the accidental discharge of your rifle that put a stop to the fight."

Peter Judson was cautiously peering about, when he espied Wade and Nora.

"Hi, thar!" he said. "Be ye enemies or friends?"

"Friends," replied Wade.

"Ye jest missed some fun, shore. Reckon we give them fellers 'bout as good a scare as ever they had, don't you think?"

"From the way they retreated," said Wade, "I believe they were frightened; but we must be very careful, Judson,—one horse went up the hill riderless."

Old man Peter scratched his head. "The dickens ye say. Reckon what that means, Wade?"

"That someone is lurking around in the dark to pick us off when we least expect it."

"Wade, ye don't know these fellers yet, long's ye've been here. Somebody's lyin' out yonder dead, as shore as you live. Tom, git the lantern an' come on; let's take a look."

Followed by Tom and Wade, Peter went out the gate toward the spot where the enemy were located while the fighting was going on. Old Peter, that old time scout of the mountains, stopped and stood in a listening attitude. Now he heard the faint groan from someone to the left of them; his trained ear carried him to the fallen man.

"Hi, thar, friend!" he called out; "whar air ye?"

"I'm dyin'," came back the groaning reply, "I'm dyin', shore; this time."

Peter went on and bent over the fallen form. Throwing the glare of his lantern in the face of the man, he gasped, "My God! it's Al Thompson."

"Yes, it's Al, old man; ye got me this time." Thompson was speaking laboriously, while Wade and those near listened breathlessly. Thompson was dying sure enough. His last words were a curse against those who had been his enemies. "Ye got me now, damn ye!" he said, "but I'll git ye when ye come down ter t'other world, ye——"

Thompson could say no more.

Peter looked into the pale face. "He's dead, shore, boys; he's a goner now, an' won't give us any more trouble."

Just at this juncture there could be heard the sound of the heavy beat of horses coming over the mountain.

"Git back a little, quick!" said Peter, "they mout be more trouble in the air."

There was no further danger, however, for old Jim Thompson came over the mountain bearing the flag of truce; with him were two other men.

"Hey, Judson!" he cried, "come out quick. There will be no more fightin' from this side." Old man Thompson was quite surprised to hear Judson reply from a very few feet away: "Ef ye mean that, Jim, hit's good news, an' I'm with ye; but ef ye air a-jokin' or workin' a game, ye better go slow."

"I'm sincere, Peter," replied Thompson. "Ye've shot my arm off agin to-night an' killed Al, an' I've got 'nough, an' nuthin' left to fight fer. It's no fault o' yours, as I kin see."

"I'm willin' ter be yer friend, Jim. Git down an' les hold prayer over Al's dead body, an' bind this covenant over him so's ther fust one as breaks it, let them what hears kill us then an' thar."

Wade and Nora stood off a few paces and, though there was gloom about the mountain side for some, they were very happy with the thought that with Al Thompson out of the way their troubles would forever end.

There remains no more incidents to be related in the story of John Redmond's desire for revenge, other than to relate that he told his secret to Nora, who in turn told her father all. Peter related the full circumstances of the death of the elder John Redmond, and proved beyond the shadow of a doubt that Al Thompson slew him single handed.

*** END OF THE PROJECT GUTENBERG EBOOK THE
NIGHTRIDERS' FEUD ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.